

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/28/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC18-01854
CASE NAME: CHIOK VS NUSHAKE ROOFING
JURY TRIAL 5 DAYS
FILED BY:
TENTATIVE RULING:

Pursuant to the Court's Order entered September 15, 2026, the jury trial has been **VACATED** and a Case Management Conference and trial-setting conference is set for October 6, 2026, 8:30 am in Department 34.

2. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNSKA VS. TATILA DOWNING

FILED BY:

TENTATIVE RULING:

Plaintiff Jarzynka's motion for summary adjudication as to the partition cause of action is **GRANTED IN PART**. The Court enters an interlocutory judgment finding that Plaintiff and Defendant each own 50 percent of the property on Caitlin Court and that Plaintiff has a right to partition, subject to the buyout process in the Partition of Real Property Act. The parties shall follow the procedures in the Partition of Real Property Act, including redoing the buyout process now that the ownership interests have been determined.

MSA procedure

A plaintiff may move for summary judgment or adjudication if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can be granted only "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*See Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

"Plaintiff's *initial* burden of proof in moving for summary judgment, however, did not include disproving any affirmative defenses asserted by defendants. ... Code of Civil Procedure section 437c, subdivision (p)(1) provides a plaintiff meets the burden of showing there is no defense to a cause of action 'if that party has proved each element of the cause of action.' Upon meeting that burden, the burden shifts to the defendant 'to show that a triable issue of one or more material facts exists as to that cause of action *or a defense thereto.*' [Citation.]" (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564.)

Plaintiff's Motion

Plaintiff seeks summary adjudication of his partition cause of action for the Caitlin Court property.

A co-owner of property has an absolute right to partition unless barred by a valid waiver.

(Code Civ. Proc. § 872.710, subd. (b).) The trial court may grant summary judgment in a partition action and enter an interlocutory judgment directing partition of the property. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 498.) “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (Code Civ. Proc., § 872.720 (a).)

The undisputed facts are that Plaintiff and Defendant took title to the property in 2020 as joint tenants. (Jarzynka dec. ¶¶2-5 and ex. 3.) In 2024, Plaintiff severed the joint tenancy. (Jarzynka dec. ¶¶6 and ex. 4.) The parties are currently co-equal owners of the property as tenants-in-common. (Jarzynka dec. ¶¶7.)

This evidence is sufficient for Plaintiff to meet his initial burden of showing he and Defendant each have a 50/50 ownership interest in the property. Further, as a co-owner of the property, Plaintiff has the right to a partition of the property. The Court finds that Plaintiff has met his initial burden on the motion for summary adjudication of the partition cause of action.

Defendant’s opposition

Defendant does not oppose Plaintiff’s three material facts. Instead, Defendant attempts to raise several affirmative defenses: estoppel, waiver, unclean hands and fairness.

Defendant argues that Plaintiff does not seek an order adjudicating any of Defendant’s affirmative defenses and that these defenses all require factual inquiries that must be tried to a jury. As an initial matter, Plaintiff was not required to defeat the affirmative defenses. (*Oldcastle Precast, Inc., supra*, 170 Cal.App.4th at 564.) Once Plaintiff provided evidence of his right to a partition, the burden shifted to Defendant to show that one or more of her affirmative defenses is supported by the evidence. She must explain how the evidence meets the elements for the affirmative defense.

As an initial matter, Plaintiff argues in reply that only waiver is a valid defense to a partition of concurrent interests in the property. “Except as provided in Section 872.730, partition as to concurrent interests in the property shall be as of right unless barred by a valid waiver.” (Code Civ. Proc. § 872.710 (b).) “A co-owner of property has an absolute right to partition unless barred by a valid waiver. (Code Civ. Proc., § 872.710, subd. (b).) ‘[T]he right of partition may be waived by contract, either express or implied.’ [Citation.]” (*LEG Investments, supra*, 183 Cal.App.4th at 493.) Plaintiff points out that most of the cases cited by Defendant predated this statute, which was enacted in 1976.

As to waiver, “[w]aiver requires an existing right, the waiving party’s knowledge of that right, and the party’s ‘actual intention to relinquish the right.’ [Citation.]” (*Lynch v. California Coastal Com.* (2017) 3 Cal.5th 470, 475.) Defendants evidence shows that the parties had an understanding that Defendant could stay in the house if the parties’ relationship ended. Defendant also claims that Plaintiff promised to stay in their relationship. Assuming Defendants’ version of these events is true,

they do not show facts supporting waiver. There is no evidence that Plaintiff knowingly gave up his right to a half ownership interest in the property nor is there evidence that Plaintiff knowingly gave up his right to a partition of the property.

Given Code of Civil Procedure section 872.10(b), Defendant has not shown that estoppel or unclean hands are proper defenses to a partition action. Even if they were, these defenses fail on the merits.

As to the estoppel defense, it is not entirely clear if Defendant's argument is for equitable estoppel or promissory estoppel, however, the cases cited in the opposition are equitable estoppel cases. Defendant argues that "[a]ll that is required for an equitable estoppel is a 'serious change of position and 'unconscionable' injury. [Citation.]" (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1072.)

"A claim of equitable estoppel consists of the following elements: (1) a representation or concealment of material facts; (2) made with knowledge, actual or virtual, of the facts; (3) to a party ignorant, actually and permissibly, of the truth; (4) with the intention, actual or virtual, that the ignorant party act on it; and (5) that party was induced to act on it. [Citation.]" (*Joffe v. City of Huntington Park* (2011) 201 Cal.App.4th 492, 512-513; see also *Long Beach v. Mansell* (1970) 3 Cal.3d 462, 489.)

Defendant argues that estoppel applies here because she deposited all her income in the parties' joint account, let Plaintiff spend whatever he wanted, endured the physical and emotional toll of two rounds of IVF; and jointly acquired two properties (Caitlin Court) and the New Hampshire property. Defendant says that she would not have done any of these things if she knew that Plaintiff would unilaterally leave and then attempt to force the sale of Caitlin Court.

Defendant argues that Plaintiff knew that her children's wellbeing was important to Defendant and that they chose Caitlin Court because it was close to the children's school. She says that she relied on Plaintiff's commitment to their romantic partnership in her decision to jointly purchase a home with him, and had she known he would attempt to force her to sell her home and uproot her children, she would not have jointly purchased it with him. Defendant does not provide the ages for her children but states that one is in high school and the other in college. (Downing dec. ¶136.) Plaintiff testified that the two children were born in 2005 and 2007. (Jarzynka depo. 190:20-191:10.) Thus, the children are likely approximately 18 and 20 years old.

Defendant declares that she and Plaintiff "had a mutual understanding that [Defendant] would remain in possession of Caitlin Court, my home, if our relationship ended. [Plaintiff] and I had many conversations consistent with this understanding." (Downing dec. ¶134.) She also declares that these "assurances were given to assuage my concerns regarding what would happen if we broke up." (Downing dec. ¶134.) Plaintiff testified that he did not remember having conversations about what would happen if the parties broke up. (Jarzynka depo. 259:21-260:13.) Both parties confirm that they discussed what would happen if Defendant predeceased Plaintiff and Plaintiff promised to take care of

Defendant's children financially. (Downing dec. ¶34; Jarzynka depo. 206:6-207:10.)

As to the material representation that Plaintiff promised to never leave Defendant and he later decided to leave--that kind of representation does not show that equitable estoppel is a defense to determining the parties' ownership interest in the property. It is not a representation of fact, but instead a statement of future intent.

As to the evidence that the parties' understanding was that Defendant could stay in the home even if the parties' relationship ended, that is also not a statement of fact and thus, insufficient for equitable estoppel.

Further, to the extent Defendant argues promissory estoppel there needs to be a promise that is "clear and unambiguous in its terms." (*Joffe, supra*, 201 Cal.App.4th at 513.) The parties' understanding that Defendant could stay at the house does not provide evidence of clear and unambiguous terms of a promise because, among other things, it does not purport to specify for what length of time. And even if this promise were found to be sufficiently clear and unambiguous it does not address the parties' ownership interests in the property nor Plaintiff's right to a partition. The evidence here does not support equitable or promissory estoppel of the partition claim.

Defendant argues that the unclean hands defense is a fact question. It is true that the application of the unclean hands defense is generally a fact question and often not properly decided on a summary judgment motion. (See, *Mattco Forge, Inc. v. Arthur Young & Co.* (1992) 5 Cal.App.4th 392, 407.) Nonetheless, Defendant has the burden of providing facts showing that the unclean hands defense might apply. Without evidence that the unclean hands defense applies here, Defendant cannot use that defense to defeat summary adjudication.

As the application of the unclean hands defense, "the misconduct asserted in an unclean hands defense must be sufficiently related to the matter currently before the court." (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 680.) Here, Defendant argues that the unclean hands defense applies because of the Defendant's decision to create an embryo in reliance on Plaintiff's commitment to the relationship and Plaintiff's request for sole ownership of the New Hampshire property. The issue here is the ownership interest of the property on Caitlin Court. Neither the Embryo nor the New Hampshire property relate to ownership of the Caitlin Court property. The Court finds that Defendant has not presented evidence showing that unclean hands might apply here and therefore, has not met its burden on this affirmative defense.

The Court finds that Defendant has not shown there is a triable issue of material fact as to the parties' ownership interests or as to Plaintiff's right to a partition. And therefore, summary adjudication of the partition claim is granted.

Evidence

The Court grants Plaintiff's request for judicial notice of recorded documents and court

records.

The Court grants Defendant's request for judicial notice of court records.

The Court notes that Plaintiff's objections to evidence included objections to large amounts of texts. In that case if any portion of the chosen text is admissible, the Court will overrule the objection. The Court rules on the objections as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.

3. 9:00 AM CASE NUMBER: C24-02536
CASE NAME: ELIZABETH CARSON VS. RENAISSANCE RESIDENTIAL HOLDINGS, LLC
BE RELIEVED AS COUNSEL FOR PAKAN POURSAEID
FILED BY: POURSAEID, PAKAN
TENTATIVE RULING:

Micah A. Thompson and Tenant Law Group, PC ("Counsel") filed a Motion to be Relieved as Counsel on May 5, 2026 (the "Motion to be Relieved as Counsel"). The Motion to be Relieved as Counsel was set for hearing on July 13, 2026. Thereafter, the motion was continued to September 28, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Pakan Poursaeid ("Client").

The supporting declaration filed by Counsel indicates that "[w]ithdrawal is required or permitted by California Rule of Professional Conduct 1.16(a) or (b)." See Declaration filed May 5, 2026, ¶12. Counsel's Client has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to submit an updated proposed order after hearing.

4. 9:00 AM CASE NUMBER: C25-00147
CASE NAME: JANE DOE VS. COUNTY OF CONTRA COSTA, A PUBLIC ENTITY
JUDGMENT ON THE PLEADINGS
FILED BY: COUNTY OF CONTRA COSTA, A PUBLIC ENTITY
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the first, second, and third causes of action fail and that the Court should grant the Motion without leave to amend.

For the reasons set forth below, the hearing on the Motion is continued until **Monday, November 2, 2026, at 9:00 a.m., in Department 34**. The parties shall meet and confer **by October 9, 2026**, and Defendant shall file the required "meet and confer" declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by October 16, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged "**in person, by telephone, or by video conference**" prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion "failed to respond to the meet and confer request of the moving party. . . ." *Id.* The moving party must then file a declaration with the motion attesting to the party's compliance with the meet and confer requirement. *Id.* Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 ("Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.")

Here, Defendant has not filed any declaration with the Motion that addresses the status or satisfaction of the meet and confer requirement. Accordingly, the Court finds that Defendant has made no effort to meet and confer in accordance with the law. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

5. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
PRELIMINARY INJUNCTION
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

Plaintiff filed his Second Motion for Preliminary Injunction on April 30, 2026 which was set for hearing on September 28, 2026. A prior motion was denied without prejudice to renewing the motion based on the current operative pleadings. See Order entered April 21, 2026. The renewed motion is based on the Second Amended Complaint. However, Plaintiff's operative complaint has again been superseded by an amended complaint. A Third Amendment Complaint was filed on September 8, 2026. Accordingly, the renewed motion is **DENIED**, again without prejudice.

6. 9:00 AM CASE NUMBER: C25-01070
CASE NAME: FUAD ALQADHI VS. JUAN GAYTAN ALMANZA
PLAINTIFF'S AMENDMENT TO COMPLAINT
FILED BY: GAYTAN ALMANZA, JUAN CARLOS

TENTATIVE RULING:

Defendant Juan Carlos Gaytan Almanza's ("Almanza") May 7, 2026 "Demurrer to Plaintiff's Amendment to Complaint" is OVERRULED.

Background

Plaintiff Fuad Alqadhi alleges that he was injured in a motor vehicle collision on April 18, 2023. He filed his complaint on April 16, 2025, alleging causes of action for motor vehicle negligence and general negligence against Almanza, the registered owner and insurance policyholder of the other vehicle, and Does 1 through 50. On December 23, 2025, Plaintiff filed an amendment to the complaint substituting Jacquelin Gaytan, the driver of Almanza's vehicle, for Doe 1. The Court signed the amendment form on February 20, 2026.

Almanza filed this demurrer on May 7, 2026. He argues that Plaintiff knew Gaytan's identity when the complaint was filed, so the Doe amendment does not relate back under Code of Civil Procedure section 474 and the claims against Gaytan are barred by the two-year statute of limitations in Code of Civil Procedure section 335.1. Plaintiff filed his opposition on September 15, 2026, supported by the declarations of Plaintiff and his counsel, Nikolaus W. Reed.

Analysis - Procedure

The notice of demurrer names Almanza as the demurring party, but the demurrer is directed entirely at the Doe amendment substituting Gaytan, and the memorandum asks that the action against Gaytan be dismissed. The same counsel represented both defendants when the demurrer was filed, and Plaintiff does not object to the form of the demurrer or to Almanza's standing to bring it. The Court therefore treats the demurrer as brought on behalf of Gaytan.

Code of Civil Procedure section 474 does not specify how a defendant may challenge a Doe amendment. When a defendant contends the plaintiff knew the defendant's name and the facts supporting the cause of action when the complaint was filed, whether the plaintiff was actually ignorant is ordinarily a question of fact. (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944-948.) Courts have permitted such challenges through evidence-based pretrial motions, including motions to quash service of summons. (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1063, 1067.) A demurrer is not a suitable vehicle, because the demurring party's knowledge showing does not appear on the face of the pleading.

Nothing on the face of the complaint or the Doe amendment shows a time bar. For this reason alone, the Court would overrule the Demurrer.

Merits

Even if not procedurally defective, the Court would overrule the Demurrer.

"The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed." (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) "A recognized exception to the general rule is the substitution under [Code of Civil Procedure section] 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed." (*Id.*)

Section 474 provides, in pertinent part, as follows: "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint. . . and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; . . ."

Section 474 must be liberally construed to enable a plaintiff to avoid the bar on the statute of limitations where he is ignorant of the identity of the defendant. Ignorance of the facts is the critical issue, and whether it be due to misinformation or negligence is not relevant. Under section 474, therefore, a plaintiff has no duty to exercise reasonable diligence prior to filing the complaint to discover the defendant's identity. (*Balon v. Drost* (1993) 20 Cal.App.4th 483, 487-488.) "[A] plaintiff is entitled to the benefits of section 474 unless substantial evidence shows she was not ignorant of the facts she needed to know." (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 595 [General Motors].)

Almanza contends the claims against Gaytan are barred by the two-year statute of limitations under Code of Civil Procedure section 335.1 because the Doe amendment does not satisfy section 474. Almanza argues Plaintiff knew Gaytan was the driver of the other vehicle from the time of the accident because Plaintiff spoke with her at the scene and the two exchanged "contact and insurance information at the scene...." (MPA, p. 2:23-25.) Almanza also argues Plaintiff's counsel knew Gaytan's identity before the complaint was filed because Plaintiff's counsel had her complete a Declaration of Assets and Insurance, which she signed on September 13, 2024. Almanza claims that as a result, Plaintiff was not ignorant of Gaytan's name when he filed the complaint, the Doe amendment does not relate back to the original filing date, and the claims against Gaytan are time-barred.

Plaintiff responds that he did not know Gaytan's name until December 15, 2025, when Almanza's responses to form interrogatories identified her as the driver, and that he filed the Doe amendment eight days later. (Reed Decl., ¶¶ 7-8, Exhs. 2-3.) Plaintiff acknowledges that he spoke with the other driver at the scene and knew she was a woman, but states that she did not identify herself or provide any names. The only information she provided was insurance information for the vehicle, which listed only Almanza, whom Plaintiff believes is her husband. Plaintiff further states that at no time before or after the accident did he receive any information as to the identity of the driver. (Alqadhi Decl., ¶¶ 4-6.) Plaintiff contends this is why the original complaint named Almanza. Plaintiff points out that later correspondence from the insurer and the DMV registration for the vehicle also identified only Almanza. (Reed Decl., ¶¶ 9-10, Exhs. 4-5.) As to the Declaration of Assets and Insurance, Plaintiff's counsel states that the form was a blank form attached to Plaintiff's policy limits demand sent on August 15, 2024. Counsel states that he never received the completed form and that the demurrer was the first time he saw it with Gaytan's name on it. (Reed Decl., ¶¶ 4-5.) Plaintiff argues that the

completed form was to be returned only if the insurer tendered the policy limits, and because the insurer never accepted the demand, the form never came back.

The evidence does not show that Plaintiff knew Gaytan's name when he filed the complaint. Plaintiff's deposition testimony establishes that he spoke with the other driver at the scene and knew she was a woman. It does not establish that he learned her name. Plaintiff states without contradiction that the driver did not identify herself and that the only information she provided was insurance information listing Almanza. (Alqadhi Decl., ¶¶ 4-5.) The insurer's correspondence and the DMV registration likewise identified only Almanza. (Reed Decl., ¶¶ 9-10, Exhs. 4-5.)

The Declaration of Assets and Insurance does not change this conclusion. It shows that Gaytan identified herself as the driver on September 13, 2024. It does not show that Plaintiff or his counsel ever received it. Almanza offers no evidence that the completed form was returned to Plaintiff's counsel, and counsel states that it was not and that he first saw it as an exhibit to the demurrer. (Reed Decl., ¶¶ 4-5.) Once Plaintiff learned Gaytan's name from Almanza's interrogatory responses, he substituted her as Doe 1 within eight days.

Almanza has not shown by substantial evidence that Plaintiff knew Gaytan's name when he filed the complaint. The Doe amendment therefore relates back to April 16, 2025, and the claims against Gaytan are not barred by the statute of limitations.

Disposition

Almanza's purported demurrer is **OVERRULED**. Plaintiff shall prepare the order, serve the signed order, and file a notice of entry of order. Jacquelin Gaytan shall file a responsive pleading within ten (10) days after service of notice of entry of order.

7. 9:00 AM CASE NUMBER: C25-01564
CASE NAME: JULIE BRUCE VS. WILLIAM ANDERSON
SET ASIDE JUDGMENT AND FOR LEAVE TO DEFEND ACTION
FILED BY: ANDERSON, WILLIAM
TENTATIVE RULING:

Defendant William Anderson's Motion to Set Aside Default and Default Judgment is **GRANTED**.

Background

Plaintiff Julie Bruce and defendant William Anderson are former romantic partners who co-owned real property at 1170 Mills Place in Oakley. The property had belonged to the trust of Bruce's late mother. In November 2020, the trust sold the property to Bruce and Anderson for \$430,000, with title taken in both names. The price was covered by a loan and a credit from the trust. The closing statements label that credit a gift of equity. The credit was not cash. It represented equity the trust applied to the price instead of taking in payment. Bruce says she contributed \$165,000 of her inheritance to the purchase.

After the relationship ended, the parties agreed to sell the property. Thereafter, on May 23, 2025,

Bruce sent Anderson a demand letter seeking reimbursement of her \$165,000 contribution. On June 4, 2025, Bruce filed this action for partition of the sale proceeds, an accounting, and a constructive trust over \$165,000 in net proceeds. Anderson was personally served with the complaint on June 13, 2025. On June 20, 2025, both parties signed escrow instructions placing about \$150,000 of the anticipated proceeds in a holding account, to be released only on mutual instructions or court order, and the July 3 estimated closing statement directed \$141,715.04 to that account.

On July 7, 2025, the parties' real estate agent, Kimberly Barnett, texted Bruce that Anderson was on board with a 120/80 split of the proceeds in Bruce's favor but was asking that the November hearing in this case be canceled. The only matter then on calendar was a case management conference set for November 4, 2025. Barnett declares that Bruce confirmed she desired to move forward. On July 8, Barnett emailed the title company, copying Bruce at the email address listed on her complaint, stating that "Julie and William have settled and will not be having net proceeds sent to Green Escrow," that the holding account was canceled, and that the proceeds were to be distributed \$120,000 to Bruce and \$80,000 to Anderson, with the remainder divided 60/40. On July 10, Bruce signed an amended seller's closing statement carrying out those terms, and the sale closed.

Bruce did not dismiss the case. On November 4, 2025, she appeared at the case management conference and told the Court she had just submitted a proof of service with a default packet. Anderson did not appear. The clerk entered default on November 7, 2025. On November 13, 2025, the Court entered a \$45,000 damages judgment under Code of Civil Procedure section 585(d), based on Bruce's declaration that she had invested \$165,000 and recovered only \$120,000. Bruce served notice of entry of judgment by UPS on November 13, 2025 and a writ of execution issued November 26, 2025.

Anderson retained counsel on February 2, 2026, and filed this motion on May 11, 2026. Bruce filed an opposition on May 22, 2026, and a supplemental declaration on May 26, 2026. Anderson filed a reply on September 18, 2026.

Anderson moves under section 473.5 to set aside the default and default judgment and for leave to defend. He argues that because the parties settled before his responsive pleading was due, he had no actual notice that the action was going forward, and his failure to answer was not inexcusable neglect. In reply, he adds two grounds. The first is that a default obtained after a false promise of compromise is extrinsic fraud warranting relief under the Court's inherent equitable power. The second is that the \$45,000 damages judgment is void under sections 580 and 473(d) because the complaint demanded only equitable relief against the sale proceeds. He argues he acted with reasonable diligence and Bruce suffers no prejudice.

Bruce opposes the motion. She argues that Anderson was personally served and had actual notice of the action, so relief under section 473.5 is unavailable, and reliance on a realtor's characterization of an escrow payout as a settlement was inexcusable neglect. Bruce denies that any settlement occurred, pointing to the absence of a signed agreement or a stipulation under section 664.6 and to Barnett's lack of authority to compromise her claims, and she says her own later filings show she never treated the matter as resolved. Bruce also argues Anderson was not diligent, because he waited about 80 days after receiving notice of the judgment to retain counsel, and counsel then took about 99 more days to file this motion.

Discussion

There are four bases upon which a defendant may seek to set aside a default judgment: (1) relief for "mistake, inadvertence, surprise, or excusable neglect" under Code of Civil Procedure section 473, subdivision (b), (2) the default judgment was void as a matter of law, (3) lack of actual notice under Code of Civil Procedure section 473.5, subdivision (a), or (4) equitable relief for extrinsic fraud or mistake. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-982 (*Rappleyea*).)

Relief under section 473, subdivision (b), is unavailable. A motion to set aside a default must be filed within six months of entry of the default, and that deadline is jurisdictional. Default was entered on November 7, 2025, and this motion was filed on May 11, 2026.

Relief under section 473.5 is also unavailable. That section applies when service of a summons has not resulted in actual notice to a party in time to defend the action. Anderson was personally served with the summons and complaint on June 13, 2025, and does not contend that service failed to reach him or reached him too late to respond. He knew of the action with the full response period remaining. His contention is that he chose not to respond because he believed the matter had settled. That is an excuse for failing to defend, not an absence of notice.

That leaves the fourth ground, which does not depend on the deadlines that bar the first and third. Anderson's notice of motion identifies section 473.5 as the statutory basis for relief, and his equitable argument was developed in his reply. Where a notice states that the motion is made on the accompanying papers and the records of the court, and those papers and that record support a particular ground, the matter is properly before the court and a defect in the notice may be disregarded. (*Carrasco v. Craft* (1985) 164 Cal.App.3d 796, 808.) The notice here states the factual basis of the motion, that the parties settled and that Anderson did not know Bruce would seek a default notwithstanding the settlement, and states that the motion is made on the declarations, the memorandum, and the records of the Court. The moving papers set out the settlement communications and the July 10 distribution and argue that Bruce cannot in equity or at law both retain the settlement consideration and prosecute the claim it resolved. Bruce has responded to those facts in two declarations. The ground is properly before the Court.

Courts have "the inherent authority to vacate a default and default judgment on equitable grounds such as extrinsic fraud or extrinsic mistake." (*Bae v. T.D. Service Co. of Arizona* (2016) 245 Cal.App.4th 89, 97, citing *Rappleyea, supra*, 8 Cal.4th at p. 981; *Olivera v. Grace* (1942) 19 Cal.2d 570, 575.) Such a motion may be brought "even though the statutory period [for relief under Code of Civil Procedure section 473, subdivision (b)] has run." (*Id.* at p. 98, quoting *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1229.) "Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been 'deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.'" (*Id.* at p. 97, quoting *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.) "In contrast, the term 'extrinsic mistake' is 'broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits.'" (*Id.* at pp. 97-98, quoting *Rappleyea, supra*, 8 Cal.4th at p. 981.)

Anderson frames his argument as extrinsic fraud, arguing that Bruce induced his default by a false promise of compromise. The Court does not reach that question, because these facts establish extrinsic mistake. Anderson's belief that the action had been resolved was induced by written

communications passing through the parties' shared real estate agent, and that belief cost him a hearing on the merits. The circumstances are extrinsic to the litigation, and the effect on Anderson is the same whatever Bruce understood at the time.

To obtain equitable relief, the moving party must show that he has a meritorious defense, that he has a satisfactory excuse for not presenting a defense to the original action, and that he was diligent in seeking to set aside the default once it was discovered. (*Rappleyea, supra*, 8 Cal.4th at p. 982.)

Anderson has shown a meritorious defense. He contends the parties reached and performed a settlement that resolved the claims pleaded in the complaint, and that Bruce's acceptance of the distribution and her signature on the July 10 statement constitute an accord and satisfaction. That defense, if proved, would bar the action. He also contends that the equities do not support the allocation Bruce seeks, pointing to his payment of the carrying costs on the property and to Bruce's acceptance of the larger share of the proceeds at sale. Bruce disputes Anderson's accounting, but she does not claim that he lacks a defense that could be presented.

Anderson has also shown a satisfactory excuse. Before any responsive pleading was due, Barnett relayed to Bruce that Anderson would agree to the 120/80 division on the condition that the November hearing be canceled. Bruce then abandoned the holding account she had agreed to a few weeks earlier, which was releasable only on mutual instructions or court order, was told in writing on July 8 that the parties "have settled," and signed the amended closing statement and took \$122,122.52 two days later. She does not deny receiving the July 8 email, and while she notes that her response to the July 7 text is not among the exhibits, she does not say what that response was. Anderson's belief that the action was over was reasonable, and his failure to answer followed from that belief. The record does not suggest indifference to the action.

Anderson has also acted with sufficient diligence. He received notice of entry of judgment on November 14, 2025, contacted counsel promptly, and was told that counsel could not take the matter and that he should seek other representation because he needed to act immediately. He searched for other attorneys and returned when none would take the case, retaining counsel on February 2, 2026. Bruce characterizes the delay as a want of diligence, but Anderson did not ignore the judgment. He sought counsel within days of learning of it and proceeded as the counsel he was able to retain advised. Counsel's trial and hearing obligations in other matters accounted for the time that followed.

In any event, diligence is not measured in isolation. "If heightened prejudice strengthens the burden of proving diligence, so must reduced prejudice weaken it." (*Rappleyea, supra*, 8 Cal.4th at p. 984.) Bruce identifies no prejudice. The property was sold and the proceeds were distributed, and Bruce retains the funds she received. Thus, Bruce is restored to the position she occupied before the default was entered.

Because the default is set aside and the judgment vacated on equitable grounds, the Court does not reach Anderson's alternative contention that the judgment is void.

Disposition

The motion is **GRANTED**, and the Court makes the following orders:

1. The default entered on November 7, 2025, is set aside and **VACATED**.
2. The default judgment entered on November 13, 2025, is **VACATED**.
3. Any and all writ(s) of execution and/or abstract(s) of judgment are hereby **VACATED, RECALLED and QUASHED**, including, but not limited to the writ of execution issued November 26, 2025.
4. If any abstract(s) of judgment were recorded, Plaintiff shall, within thirty (30) days of notice of entry of this order, take all reasonable steps to prepare and record with the County Recorder a release of the abstract(s) of judgment and any judgment lien thereunder, pursuant to Code of Civil Procedure section 697.400 and all applicable law. Thereafter, Plaintiff shall file and serve a Notice of Release of Lien.
5. Anderson shall file a responsive pleading no later than October 28, 2026.
6. Anderson shall prepare a proposed order consistent with this ruling, submit it to Bruce for approval as to form, and lodge it with the Court.

8. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
2ND AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by defendants City of Richmond and Hector Lopez, City Senior Planner, to the first amended complaint. For the reasons set forth, the Court **SUSTAINS** the demurrer as set forth further below.

Background

In his operative second amended complaint ("2AC"), Plaintiff alleges he is the owner of a duplex located at 815-831 24th Street in Richmond (the "Property"). (2AC ¶ 4.) The Court has detailed Plaintiff's underlying factual allegations in its two prior rulings on the defendants' demurrers to the original complaint and the first amended complaint ("FAC"). (1/27/2026 Order; 7/13/2026 Order.)

In the 2AC, Plaintiff's allegations reiterate and expand on the history of the application process, including lengthy allegations regarding his communications with defendant Lopez, a city planner who retired shortly after Plaintiff filed this lawsuit, various utilities, and others. (2AC ¶¶ 1, 3-42, 50, 51, 59-75.) Much of that history was set forth in great detail in the Court's ruling on the demurrer to the FAC. (7/13/2026 Order.)

In summary, Plaintiff alleges he initially applied to the City for approval of a lot split for the Property, but he later modified his application to ask the City to approve a condominium conversion for the two-unit Property. He alleges that he submitted an application on November 25, 2024 for a condominium conversion (2AC ¶ 22 and Exh. I, which is dated November 26, 2024 and refers to "splitting the duplex to 2 separate [sic] condo or town house), but that the City "altered" the application, in the version in the City's records is largely blank, though the signature appears. (2AC ¶¶ 23-27 and Exh. J.) The City planning department later continued to treat his application as one for a

lot split and indicated it would impose conditions for moving the utility boxes. (2AC ¶¶ 35-42.)

As of the date Plaintiff filed his original complaint on July 31, 2025, the City had not set a hearing on his lot split/condominium conversion application since early March 2025. Mr. Malboubi alleges that the City did not hold any Planning Commission hearings in April and May 2025 despite Mr. Malboubi's pending application and request for a hearing, then scheduled a hearing in June 2025 but informing him the agenda was full and did not set any hearing on the application in July 2025. (2AC ¶¶ 59-75.)

After Mr. Malboubi filed his original complaint, the defendants filed a demurrer to the complaint and each of its nine causes of action on multiple grounds. The demurrer was set for hearing on December 22, 2025, but the Court continued the hearing on its own motion to January 26, 2026. The demurrer based on lack of exhaustion was overruled based on the state of the record before the Court at the time, but the demurrers to all of the causes of action were sustained, with leave to amend. (1/27/2026 Order.)

On February 2, 2026, Plaintiff filed his FAC. The defendants again demurred to the FAC on multiple grounds, including failure to exhaust administrative remedies in addition to substantive deficiencies in the causes of action. Defendants' lack of exhaustion position was based on the fact that the Planning Commission had given Mr. Malboubi the relief he was requesting in the FAC, a hearing on his lot split/condo conversion application, in January 2026 and adopted Resolution 26-01. The Resolution granted approval of the lot split with conditions, including requiring three utility meters to be moved so that each parcel would have its own utility meters, and denied the application to the extent it sought a condominium conversion on the ground conversion to condominiums was prohibited by the Richmond Municipal Code where the conversion would result in a condominium project of less than five units. (See 7/13/2026 Order.)

The Court sustained the defendants' demurrer to Plaintiff's FAC, including on the ground that the FAC failed to allege sufficient facts to demonstrate exhaustion of Plaintiff's administrative remedies. (7/13/2026 Order.) Though the Court expressed doubt as to Plaintiff's ability to amend to plead exhaustion, the Court granted Mr. Malboubi leave to amend to amend to allege either that he appealed to the City Council or facts excusing his exhaustion of that remedy. Plaintiff filed his 2AC on July 27, 2026.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109; *Boren v. State Personnel Board* (1951) 37 Cal.2d 634, 638.)

In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (See also *Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

The Court also considers matters of which the Court can properly take judicial notice. (*Carlloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation omitted.] The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations omitted.]" (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [emphasis added].) (*See also Sarale v. Pacific Gas & Electric Co.* (2010) 189 Cal.App.4th 225, 245 [holding exhibit attached to the complaint contradicted the allegation that no easement existed, stating that the court accepts as true the facts appearing in exhibits attached to the complaint, and if the facts appearing in the exhibit "contradict those expressly pleaded, those in the exhibit are given precedence. [Citations.]" [Citation omitted.]").) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans, supra*, 38 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5.)

Defendants' Reliance for This Demurrer on Prior Requests for Judicial Notice

Defendants' notice of the demurrer states the demurrer to the 2AC is based in part on the Defendants' request for judicial notice filed March 6, 2026 in support of their demurrer to the FAC. In that filing, Defendants asked the Court to take judicial notice of: (1) a Planning Application Form pertaining to the Property apparently signed by Plaintiff (Def. RJN Exh. 11); (2) "Attachment 1" City of Richmond Planning Commission Resolution No. 26-01 dated January 15 2026 (Def. RJN Exh. 12); (3) Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13); and (4) Notice of Entry of Order dated February 26, 2026, attaching the Court's January 27, 2026 Order adopting the Court's January 26, 2026 tentative ruling (Def. RJN Exh. 14). (Evid. Code § 452(c) and (d).) In the March 6, 2026 RJN, Defendants also asked the Court to take judicial notice of the documents previously subject to Defendants' request for judicial notice and supplemental request for judicial notice filed in connection with Defendants' demurrer to the original complaint. Those documents are described at length in the January 26, 2026 tentative ruling, adopted as the Order of the Court by Order filed January 27, 2026. (Def. RJN Exh. 14 [1/27/2026 Order p. 2].) Defendants specifically requested judicial notice of the various articles and specific sections of the Richmond Municipal Code ("RMC") identified in the prior ruling and Defendant's prior RJNs, which are the proper subject of judicial notice under Evidence Code sections 452(b) and (c).

The Court will take judicial notice of the documents subject to the Defendants' prior judicial notice requests, subject to the general limits on judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1569 [judicial notice of prior order or judgment].) Though a demurrer is not a proper procedural vehicle for resolving factual disputes (*Fremont Indemnity, supra*, 148 Cal.App.4th at 113-115), the allegations of a complaint are not required to be accepted as true if they are contradicted by matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 638 Cal.4th at 6, 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, that were alleged in the original complaint but not the operative complaint, from which both sides quoted, finding "no potential dispute exists as to the letter's language, allowing its consideration on demurrer" and stating, " '[A] complaint otherwise

good on its face is subject to demurrer when facts judicially noticed render it defective." [Citation.]" [Citations omitted.]")

Plaintiff's Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of its prior rulings of January 26, 2026 (actually adopted by the Court by order filed January 17, 2026) on the defendants' demurrer to the original complaint and July 13, 2026. The Court **GRANTS** the request, subject to the limitation on judicial notice of a prior order or judgment. (*Sosinsky, supra*, 6 Cal.App.4th at 1569 [judicial notice of prior order or judgment].)

Analysis

The 2AC alleges five causes of action, including a petition for writ of mandate (1st C/A), abuse of discretion (2nd C/A), misapplication of Municipal Code (3rd C/A), failure to perform mandatory duty (4th C/A), and declaratory relief (5th C/A). Defendants demur to the 2AC in its entirety for lack of exhaustion of administrative remedies and failure to allege state facts sufficient to state the causes of action pleaded.

A. Demurrer to the Entire Complaint for Failure to Exhaust Administrative Remedies

Defendants reassert their contention that Plaintiff failed to exhaust his administrative remedies. The factual basis of their argument, however, is different from the basis for the failure to exhaust argued in support of Defendants' demurrer to the original complaint.

1. Legal Background

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. [Citation omitted.] In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. [Citations omitted.]" (*Tejon Real Estate, LLC v. City of Los Angeles* (2014) 223 Cal.App.4th 149, 156 [emphasis added]). The exhaustion doctrine does not apply if there is no administrative remedy provided or if the remedy is inadequate. (*Tejon Real Estate, supra*, 223 Cal.App.4th at 155-156 ["'With limited exceptions, . . . where an adequate administrative remedy is provided . . . , resort to that forum is a "jurisdictional" prerequisite to judicial consideration of the claim.'" [Citation omitted, emphasis added.]"]). "The exhaustion doctrine 'is primarily grounded on policy concerns related to administrative autonomy and judicial efficiency,' permitting 'an agency to reach a final decision without interference from the courts' while enabling any necessary 'judicial review by allowing the agency to draw upon its expertise and develop a factual record for the court's consideration.' [Citation omitted.]" (*Lafayette Bollinger Development LLC v. Town of Moraga* (2023) 93 Cal. App. 5th 752, 770.)

The futility exception is a narrow one. (*Steinhart v. County of Los Angeles* (2010) 47 Cal. 4th 1298, 1313.) It "applies only if the party invoking it can positively state that the administrative agency has declared what its ruling will be in a particular case. [Citation omitted.]" (*Id.* at 1313-1314.) It requires proof that when the appeal would have been submitted to the City Council in this case, the City Council had "predetermined its position." (*Id.* at 1314 [rejecting argument that the position the County took in a subsequent court action alone was a basis for invoking the futility exception].)

2. Plaintiff's Allegations

Based on judicially noticeable facts and Plaintiff's allegations in the 2AC, Plaintiff's application was transferred to a new city planner after Mr. Lopez's retirement. (2AC ¶¶ 76-81.) Plaintiff alleges that he received the notice of public hearing setting a hearing on his application for January 15, 2026, roughly six months after the lawsuit was commenced while Defendants' demurrer was still pending. (2AC ¶ 82.) Defendants scheduled and held a hearing on Plaintiff's application for the lot split/condominium conversion before the City Planning Commission. (2AC ¶¶ 76-91 and Exhs. AA-DD.) Plaintiff's 2AC acknowledges the staff report that addressed Plaintiff's position that he was seeking approval of a condominium conversion and detailed the reasons why such the Property did not qualify for a condominium conversion, among other reasons based on RMC section 15.04.711.020 A.4 and B. (2AC ¶¶ 89-94 and Exh. DD.)

The Planning Commission adopted a resolution addressing Plaintiff's application, Resolution 26-01, which approved the lot split with the condition of moving the three utility boxes and denied approval of Plaintiff's application to the extent it sought a condominium conversion because the conversion of the Property to a two-unit condominium project is prohibited by the RMC. (Def. RJN Exh. 12; RMC § 15.04.711.020 B.) The Notice of Action by the City of Richmond Planning Commission dated January 21, 2026 (Def. RJN Exh. 13) explicitly advised of the right to appeal the Planning Commission decisions to the City Council within 10 days.

In sustaining the City Defendants' demurrer to the FAC for lack of exhaustion, the Court granted Plaintiff leave to amend to allege facts, if he could, demonstrating that he had exhausted the administrative remedy available to him from the Planning Commission decision by appealing the decision to the City Council or facts demonstrating that he was not required to exhaust that remedy before obtaining judicial review of the Planning Commission decision. Mr. Malboubi clearly acknowledges he had notice of the Planning Commission hearing and its determination in Resolution 26-01. He does not allege that he appealed the decision to the City Council.

3. Plaintiff's Alleged Excuses for Lack of Exhaustion or Futility

Mr. Malboubi allege that he was excused from pursuing the available administrative remedy of appeal to the City Council for a few reasons. The reasons he cites are (a) because he had already filed this action, (b) because the City allegedly did not present his correct condominium conversion application to the Planning Commission for the January 15, 2026 public meeting, (c) because exhaustion of his administrative remedies "was excused as futile because no final administrative decision was rendered upon Plaintiff's condominium/townhouse Planning Application," and (d) because alleged "substitution" of his application "prevented the administrative process from considering and determining Plaintiff's actual application." (2AC ¶¶ 76-94.)

Plaintiff cites no legal authority that the Planning Commission could not hold the hearing on his application for a lot split or condominium conversion after this action was filed. Mr. Malboubi has presented no legal authority in his opposition that the Planning Commission did not have the ability to set and conduct a hearing on his application despite the pendency of this action. Indeed, he complained in his FAC that the City had denied him a hearing on the application and sought an order directing the City to hold a hearing on his application asking for a condominium conversion. (FAC pp. 45-53; 7/13/2026 Order.) The judicially noticed documents and allegations in the 2AC show the City provided that hearing with an opportunity for an administrative appeal to the City Council, and Mr.

Malboubi failed to pursue that available administrative remedy. (*See Casa Blanca Beach Owners Assn. v. County of Santa Barbara* (2024) 102 Cal.App.5th 1303, 1308-1310 [affirming determination that plaintiff failed to exhaust administrative remedies when civil action filed which administrative proceedings were still pending and final decision had not been rendered]; *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 284-289 [affirming order sustaining demurrer and dismissal for lack of exhaustion where appeal to Coastal Commission was available, though the plaintiff had filed the civil action and claimed the County action was void].)

The timing of events in this case and before the City Planning Commission are notable. Plaintiff pressed the City for a hearing before the Planning Commission in early March 2025 which the City failed to provide before Plaintiff filed his original complaint on July 31, 2025. (2AC ¶¶ 59-75.) The City demurred to the original complaint on numerous grounds, including failure to exhaust administrative remedies. The hearing on the City's demurrer was originally set for December 22, 2025 but was continued on the Court's own motion to January 26, 2026. In sustaining the demurrer to the writ of mandate cause of action, the Court indicated that Plaintiff might be able to state a cause of action based on the City's obligation to set a hearing and determine Plaintiff's application. (1/27/2026 Order.)

Before the scheduled January 26, 2026 hearing on the demurrer to the original complaint in which the City asserted lack of exhaustion, the City had in fact set a hearing on the application before the Planning Commission with notice to Mr. Malboubi, conducted a public hearing on the application, adopted Resolution 26-10, a written resolution determining the application both as a proposed lot split with conditions and as a proposed condominium conversion, and issued a January 21, 2026 Notice of Action with notice of Mr. Malboubi's right to appeal the Planning Commission decision. (2AC ¶¶ 76-94 and Exh. DD; Defs. RJN Exhs. 12, 13.) This judicially noticeable information was not before the Court when it ruled on the demurrer, but had the Court been apprised of the information, the Court's ruling on the lack of exhaustion would likely have been different.

On February 2, 2026, after Mr. Malboubi had been granted a hearing and a determination was made on his application that he was informed by the Notice of Action he could appeal to the City Council, and after the deadline to appeal based on the Notice of Action had passed, Mr. Malboubi apparently intentionally did not pursue an appeal to the City Council and instead filed his FAC in which he asked for the City to set a hearing on his application for a condominium application. (FAC pp. 45-53; 2AC ¶¶ 78-82, 89-94.) Mr. Malboubi's FAC made no mention of the fact the City granted and held a public hearing and made a written determination on his application, with an opportunity for an appeal.

The allegations of the 2AC essentially concede he received the hearing he was demanding in the FAC (FAC pp. 45-53), the Notice of Action informed him of his right to appeal the Planning Commission decision to the City Council (Defs. RJN Exh. 13), but he instead claims he was excused from having to appeal the decision because the Planning Commission allegedly did not consider his proper application for a condominium conversion. (2AC ¶¶ 76-94.) Mr. Malboubi's allegations that the Planning Commission did not consider his application for a condominium conversion are expressly contradicted by Resolution 26-01 and the Notice of Action, as well as the staff report for the Planning Commission hearing, and they ignore the opportunity he was given to add documentation for his application, which he refused to do. (2AC ¶ 89 and Exhs. AA-DD; Defs. RJN Exhs. 12, 13.) While the Court does not take judicial notice of the truth of the finding recited in Resolution 26-01 that Plaintiff

did not file a condominium conversion application, because the fact is reasonably disputable, the Court takes judicial notice of what the Planning Commission actually did, which is that it denied any application by Plaintiff for a condominium conversion of the Property as violative of the RMC. (Defs. RJN Exhs. 12, 13.)

Plaintiff had a right to appeal the adverse Planning Commission decision to the City Council. Mr. Malboubi does not deny the right to appeal existed in the allegations of the 2AC or his opposition. If Mr. Malboubi believed the Planning Commission incorrectly found that he had not filed a formal application for a condominium conversion, or if he believed the Planning Commission did not have before it his proper condominium conversion application or that it did not consider his complete condominium conversion application documents, Mr. Malboubi had the administrative remedy of an appeal to the City Council to vacate and reverse the Planning Commission's decision on those grounds, or others that he might raise. But Mr. Malboubi did not pursue that administrative remedy, as he concedes.

The errors that he believes occurred in the hearing before the Planning Commission are not an excuse for not appealing the Planning Commission decision to the City Council. To the contrary, they demonstrate why Plaintiff was required to pursue the available administrative appeal remedy so that the City had an opportunity to correct any errors made by the Planning Commission first before any judicial review. The exhaustion requirement has not been satisfied where a clear administrative remedy to correct any such errors existed, but Plaintiff did not pursue it. The allegation that exhaustion was futile because a final administrative decision was not made on his condominium/townhouse application is a further admission that there has been no administrative exhaustion and that an administrative decision could still be made on what he contends is his true or complete condominium conversion application. (2AC ¶ 94.)

The demurrer to the entire 2AC on the ground of Plaintiff's failure to allege facts showing exhaustion of administrative remedies, or an excuse for not exhausting such remedies, is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

B. Petition for Writ of Mandate (1st C/A)

As to the first cause of action, Plaintiff alleges a petition for writ of mandate under Code of Civil Procedure section 1085.

1. Writ of Mandate Standards

Code of Civil Procedure section 1085 provides that "A writ of mandate may be issued by any court to any . . . board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station . . ." (Code Civ. Proc. § 1085(a).) "To obtain a writ of mandate, 'the petitioner must show there is no other plain, speedy, and adequate remedy; the respondent has a clear, present, and ministerial duty to act in a particular way; and the petitioner has a clear, present and beneficial right to performance of that duty.'" [Citation, internal quotation marks omitted.] (*California Privacy Protection Agency v. Superior Court* (2024) 99 Cal.App.5th 705, 721 [emphasis added].) (*See also Sacks v. City of Oakland* (2010) 190 Cal.App.4th 1070, 1081.)

" 'A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists.' [Citation omitted]."

(*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.) " 'Put another way, a ministerial act is one "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take," thus "eliminat[ing] any element of discretion." ' [Citation, internal quotation marks omitted.]" (*California Privacy Protection Agency, supra*, 99 Cal.App.5th at 721 [emphasis added].) "While a writ may issue against a county, city or other public body or against a public officer, ' "the writ will not lie to control discretion conferred upon a public officer or agency. [Citations.] . . . " ' [Citation omitted.]" (*Sacks, supra*, 190 Cal.App.4th at 1081 [emphasis added].) Further, "Normally, mandate will not lie to control a public agency's discretion, that is to say, force the exercise of discretion in a particular manner." (*County of Los Angeles v. City of Los Angeles* (2013) 214 Cal. App. 4th 643, 654.)

2. Application of Standards to the 2AC

Plaintiff's 2AC, in conjunction with matters which are properly within the scope of judicial notice, does not allege facts stating a claim for a writ of mandate under the standards of Code of Civil Procedure section 1085 and the case law above. First, Plaintiff alleges he applied to the City to convert his two-unit duplex into a condominium project. RMC section 15.04.711.020 A.4 and B prohibits the conversion of a property to a condominium project if the conversion would result in a condominium project consisting of fewer than five units. He has therefore not alleged facts in the 2AC showing that the City has a clear, present and ministerial duty to process an application for conversion of a duplex to a condominium project that would be comprised of only two units based on RMC section 15.04.711.020.

In addition, the authorities indicate that approval of a subdivision, which includes a condominium conversion, is a matter of discretion with the City. (Govt. Code §§ 66424 [defining subdivision], 66473, 66474, and 66474.1 [city approval, conditional approval, or denial of approval of a parcel map based on state law and local ordinances]; *Youngblood v. Board of Supervisors* (1978) 22 Cal.3d 644, 653-656 [finding no "abuse of discretion" in approval of tentative map for subdivision as consistent with general plan, stating "it is only fair to the developer and to the public interest to require the governing body to render its discretionary decision whether and upon what conditions to approve the proposed subdivision when it acts on the tentative map"].) The Court in its January 27, 2026 ruling on the initial demurrer set forth an exhaustive analysis of various provisions of the Civil Code and the Subdivision Map Act ("SMA") addressing their application to condominiums and the subdivision at issue here and the discretion granted to a public agency in approving a subdivision, which the Court will not reiterate here. (See Def. RJN Exh. 14 pp. 7-8.) Since the approval of the subdivision proposed by Plaintiff is discretionary, Plaintiff has not alleged facts in the FAC showing that Defendants have a mandatory, ministerial duty that can be the subject of the writ of mandate cause of action.

The relief sought by Plaintiff in this cause of action in the 2AC highlights further why Plaintiff has failed to state a claim for a writ of mandate. (2AC p. 30.) The relief he asks the Court to grant is an order requiring the City not to determine the condominium conversion under RMC section 15.04.711.020, which prohibits the conversion of a project that would result in a condominium project of less than five units and in effect to direct the City to allow him to provide homeowners association documents and to approve the condominium conversion without requiring the relocation of the utilities. (2AC p. 30.) Plaintiff is asking Court to direct the City in the manner in which to exercise its discretionary powers, which the Court cannot do. (*Lafayette Bollinger Development Co.,*

supra, 93 Cal.App.5th at 772 [traditional mandate cannot be used to compel a public entity to use its discretionary powers in "a particular manner," but only to exercise its discretion when it has failed to act].)

To the extent Plaintiff claims that the City is in some manner estopped from not approving his condominium conversion or imposing conditions of moving the utilities based on statements by Lopez through June 2025, before the Planning Commission reviewed and addressed the application, the argument fails. The facts alleged show that Plaintiff was aware that Lopez himself was not the decision-maker on the application based on, among other things, his allegations regarding the March 5, 2025 email from Lopez addressing the Planning Director's position on the application. (See, e.g., 2AC ¶¶ 35-42 and Exh. P.) Plaintiff alleges no facts and does not point to any provision of the RMC that Lopez had authority to bind the Planning Director or Planning Commission to any approval or course of action. (See *Burchett v. City of Newport Beach* (1995) 33 Cal.App.4th 1472, 1479 [party dealing with public officer is presumed to know the limits of the officer's powers].)

These grounds alone are sufficient to support that the first cause of action fails to allege facts stating this cause of action. The demurrer to the first cause of action for a petition for writ of mandate under Code of Civil Procedure section 1085 is **SUSTAINED, WITHOUT LEAVE TO AMEND**. The Court need not reach any additional grounds that may make this cause of action legally deficient.

C. Abuse of Discretion, Misapplication of Municipal Code (2nd, 3rd C/As)

Plaintiff alleges the second cause of action for abuse of discretion is based on Defendants' arbitrary and capricious handling of Plaintiff's condominium conversion application. Plaintiff alleges the abuse of discretion was in part based on the City's alleged misapplication of RMC section 15.04.711.020, which he contends does not apply to his duplex conversion. The Court has previously, repeatedly rejected Plaintiff's contention based on the plain language of RMC section 15.04.711.020 A.4. and B.

He also alleges and attaches documentation concerning projects certain condominiums in Richmond with less than five units. The documents show either that any conversion was approved decades ago (Roosevelt in 1980) and not under the current RMC section 15.04.711.020 which precludes such conversions for less than five units, or only show when the properties were built, which was the early 1980s, without showing whether they were built as condominiums or converted, and if converted, when they were converted. (2AC ¶¶ 44-48 [Roosevelt property converted to condominiums in 1980], 50, 53 [Barrett Property built as condominiums and "approved as condominium in 1984"], 56 [photos of MLS records for condominiums on property listings showing they were built in the early 1980s], and Exhs. S, T, and V-1-V-3.) That the properties shown in Exhibits V-1 to V-3 were sold as condominiums does not demonstrate that the City approved any conversion of the buildings to condominiums notwithstanding RMC section 15.04.711.020 A.4. and B. Plaintiff has not shown that the Richmond Municipal Code in effect at the time of any approval of a conversion of those properties, if any of the properties were condominium conversions rather than built as condominiums, included the same restriction on conversion of properties with less than five units as found in the current RMC section 15.04.711.020. Further, the approval of the Roosevelt condominium conversion was more than 40 years ago. Plaintiff has not alleged any facts that demonstrate the City's decision was arbitrary, capricious or completely unfounded in the current circumstances more than 40 years later. Plaintiff has not alleged facts demonstrating any arbitrary or capricious action by the City in following the current RMC provision in effect when Plaintiff made his condominium conversion

application.

He alleges the third cause of action for misapplication of the Municipal Code based on the same ground cited above, namely that RMC section 15.04.711.020 does not apply to his proposed two-unit condominium conversion. The statute expressly bars conversion of units that would result in less than five units when converted. (RMC §§ 15.04.711.020 A.4. and B.)

The allegations of the 2AC and exhibits, and documents of which the Court has taken judicial notice, do not show that Plaintiff has stated these causes of action. To state a claim for abuse of discretion, Plaintiff must allege facts sufficient to show that Defendants acted in a manner that was "arbitrary, capricious, or entirely lacking in evidentiary support." (*Sacks, supra*, 190 Cal.App.4th at 1082.) Where, as here, the claim is based on a city's interpretation and implementation of its own ordinance, the Court accords "great weight to the administrative agency's interpretation and implementation of the ordinance it was charged with executing. [Citations omitted.]" (*Id.* at 1091.) "In determining whether a public agency has abused its discretion, the court may not substitute its judgment for that of the agency, and if reasonable minds may disagree as to the wisdom of the agency's action, its determination must be upheld. [Citation omitted.]" (*County of Los Angeles, supra*, 214 Cal. App. 4th at 654.)

Whatever discussions, documents, and interim reviews may have occurred, the "determination" reflected in the March 5, 2025 email (FAC Exh. N) and the Planning Commission Resolution No. 26-01 essentially reached the same result. The denial of the condominium conversion of a duplex is consistent with RMC sections 15.04.711.020 A.4 and B, so Plaintiff has not alleged facts demonstrating an abuse of discretion or misapplication of those sections in denying his condominium conversion in Resolution 26-01. The Court finds the facts alleged do not meet the standard to demonstrate an abuse of discretion under *Sacks, supra*, nor do they demonstrate that Defendants misapplied the RMC.

The demurrers to the second and third causes of action are **SUSTAINED, WITHOUT LEAVE TO AMEND.**

D. Failure to Perform Mandatory Duty, Govt. Code § 815.6 (4th C/A)

Government Code section 815.6 provides, "Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Govt. Code § 815.6 [emphasis added].) A statutory cause of action must be pled with specificity. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.)

"The elements of liability under Government Code section 815.6 are as follows: 'First and foremost, application of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.]" [Citation omitted, italics in original.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment 'affirmatively imposes the duty and provides implementing guidelines.' [Citations omitted.] [¶]

'Second, but equally important, section 815.6 requires that the mandatory duty be "designed" to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is " 'one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.' " [Citation.] . . . If these two prongs are met, the next question is whether the breach of the duty was a proximate cause of the plaintiff's injury. [Citations omitted.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898 [quoting among others *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498, 499].)

As in the case of Plaintiff's original complaint and the FAC, Plaintiff does not cite any statute imposing an affirmative, mandatory, nondiscretionary duty on the City, and specifically a mandatory duty which is designed to protect against an injury Plaintiff is claiming he has suffered. To the extent Plaintiff alleges the mandatory duty is for the City to make a determination of his condominium conversion application, issue a written determination, and provide a pathway for appeal, Resolution 26-01 and the Notice of Action show that the City complied with that duty. Documents subject to judicial notice show he obtained the relief he contends is mandated and that he seeks as the relief on this cause of action. He was given an opportunity to make an administrative appeal to address any errors in the City's actions leading up to Resolution No. 26-01 and the Notice of Action, including errors in the Planning Commission decision-making process or ultimate determination, and did not pursue the available appeal.

To the extent Plaintiff alleges the mandatory duty is to approve his condominium conversion (or lot split) without requiring the three utility meters to be moved, Plaintiff has not alleged facts or cited law that the City had that mandatory duty. Rather, applicable authority cited above shows approval of subdivisions with conditions is within the City's discretion.

The demurrer to the fourth cause of action for failure to perform a mandatory duty is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

E. Declaratory Relief (5th C/A)

Defendants contend that an action for declaratory relief may not be maintained to challenge an agency's administrative decision, citing *Tejon, supra*, and *City of Pasadena v. Cohen* (2014) 228 Cal.App.4th 1461. The Court in *Tejon* explained that though declaratory relief may be appropriate to challenge the constitutionality of a statute or regulation, "[w]here, as here, the challenge is to a regulation's 'application to the lands of the complaining part[y], . . . the proper and sole remedy [is] administrative mandamus.' [Citations omitted.]" (*Tejon, supra*, 223 Cal.App.4th at 154-155 [concluding the demurrer to the declaratory relief claim properly sustained, "[b]ecause [plaintiff's] complaint and FAC improperly sought declaratory relief to review a purported administrative decision."].) In addition, plaintiff cannot use a claim for declaratory relief to try to evade the failure to exhaust his administrative remedies. (*Casa Blanca Beach Owners Assn., supra*, 102 Cal.App.5th at 1311.)

In *City of Pasadena, supra*, 228 Cal.App.4th 1461, the Court reversed the trial court's order granting a preliminary injunction on a declaratory relief claim. Citing the "settled" rule " 'that an action for declaratory relief is not appropriate to review an administrative decision.' [Citations omitted.]" The Court of Appeal explained that the trial court instead "could have simply denied injunctive relief and dismissed the action on this ground (with or without leave to amend), or it could have construed the City's pleading as one seeking traditional mandate and (if it has adequately stated the City's

entitlement to such relief) ruled on the merits of the challenge to the administrative determination [citations omitted], and issued the writ or denied the petition." (*Id.* at 1467 [emphasis added].)

The existence of the Resolution No. 26-01 shows that Planning Commission review of his condominium conversion application occurred, and a Notice of Action with appeal information was issued. (Def. RJN Exhs. 12, 13.) The declaratory relief cause of action under the authorities cited above is not the appropriate means to review an administrative decision, i.e., the merits of the Planning Commission determination in Resolution 26-01 and Notice of Action. To the extent the declaratory relief cause of action seeks a declaration of Plaintiff's rights founded on the other four causes of action, including that he is entitled to have his condominium conversion approved with only the conditions to which he does not object, including in spite of the RMC provisions barring a two-unit conversion, then the declaratory relief cause of action is legally deficient for the same reasons those claims fail to state causes of action

The demurrer to the declaratory relief cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND.**

Conclusion and Ruling

The Court **SUSTAINS, WITHOUT LEAVE TO AMEND**, Defendants' demurrer to the 2AC in its entirety and to each cause of action. Having given Plaintiff multiple opportunities to attempt to allege legally viable claims against the City, the Court finds no basis to grant Plaintiff any further attempt to amend.

9. 9:00 AM CASE NUMBER: C25-02761
CASE NAME: INGRID MARROQUIN VS. CHINA WALL BUFFET INC.,
LEAVE TO FILE CROSS-COMPLAINT
FILED BY: KUMAR, TARA
TENTATIVE RULING:

Defendant Tara Kumar ("Defendant") filed a Motion for Leave to File Cross-Complaint on May 7, 2026 (the "Motion for Leave to File"). The Motion for Leave to File was initially set for hearing on September 28, 2026.

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to File has been **CONTINUED** to December 28, 2026 by the Court's case management orders issued September 11, 2026.
2. The moving party to serve an amended notice of motion.

10. 9:00 AM CASE NUMBER: C25-03490
CASE NAME: HERLING MARTINEZ VS. WILLIAM KATAKIS
TRANSFER AND CONSOLIDATE
FILED BY: MARTINEZ, HERLING MILENA
TENTATIVE RULING:

Plaintiff, Herling Milena Martinez, seeks to transfer a separate case to this Court for consolidation with the instant action. The motion is **DENIED without prejudice**, as discussed below.

Background

Plaintiff was living with, and in a romantic relationship with, defendant William J. Katakis for 16 years. In the present action, plaintiff sues over a number of allegations that detail physical, emotional, verbal, and financial abuse.

Plaintiff alleges she was a practicing dentist in Costa Rica and was on track to become licensed to practice in California, but at defendant's urging, she gave up her career to care for the couple's child. Plaintiff alleges defendant had a notary come to their house and that he informed plaintiff she was signing a marriage license and to keep it a secret until after they had a wedding ceremony, but that was false. (Complaint, ¶¶13-15.) Plaintiff alleges that she relied on various promises made by defendant to replace the income she would have earned as a dentist, to take care of her and share profits from various business dealings, etc., but that those promises went unfulfilled. Plaintiff and defendant lived primarily in Contra Costa County, but they purchased a home together in Truckee, taking title as joint tenants, in 2021.

The complaint alleges causes of action for (1) Equitable Partition (relating to their Alamo home), (2) Breach of Oral Contract, (3) Breach of Implied-in-Fact Contract, (4) Breach of Implied-in-Law Contract, (5) Promissory Estoppel, (6) Breach of Fiduciary Duty, (7) Unjust Enrichment, (8) Fraud and Deceit, (9) Constructive Fraud, (10) Negligent Misrepresentation, (11) Professional Negligence, (12) Constructive Trust, (13-14) Violation of California Business and Professions Code § 17200, and (15) Accounting.

A lawsuit for partition appears to have been filed by Mr. Katakis in Placer County, though aside from statements by counsel providing the case number (S-CV-0055101), plaintiff submits no evidence of that case, no evidence regarding who initiated it (references are to "plaintiff," not by name) and when it was filed. (Declaration of Charles S. Bronitsky in Support of Motion, hereinafter "Bronitsky Decl.," ¶2.)

Standard

Generally actions involving real property are to be filed in the county where the property is located. (Code Civ. Proc., § 392, subd. (a).) Still, a judge may transfer an action from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. (Code Civ. Proc., § 403.) As provided in section 404, these common questions need to also be "predominating and significant to the litigation." (Code Civ. Proc., §§ 404, § 404.1.)

Discussion

Plaintiff contends the actions share common questions of fact and law, but does little to explain. She asserts consolidation is appropriate "based on the nature of the parties' sixteen-year quasi-marital relationship." (Bronitsky Decl., ¶16.) As noted in the opposition, her

evidence “largely recites the statutory factors without supplying specific supporting facts demonstrating that common issues are predominating and significant in both actions.” (Memorandum of Points and Authorities in Support of Opposition, 3:3-6.)

In opposition to the motion, defendant points out that the Placer County partition action was filed in Placer County Superior Court because Placer County is where the Truckee Property is located. (Code Civ. Proc., § 392.) Further, the opposition contends that ownership of the Truckee Property is not disputed so that action will not determine the issues to be decided in this “Marvin Action,” only order the property sold and proceeds divided via a court trial, not a jury trial as will be needed in this case.

Plaintiff’s own complaint in this action concedes that parties do, in fact, hold title as joint tenants. (See. e.g., Complaint, ¶1(f), ¶84, ¶98(vi).) While plaintiff contends that “the ends of justice” will be served by preventing partition without fully addressing the relationship issues at play here, it is not clear to this Court that delaying or denying partition would be appropriate where the parties agree they hold title jointly and always intended to hold title jointly.

Plaintiff asserts, for the first time in reply, that defendant is taking the position in the Placer County partition action that he contributed 94.62% of the purchase price, that defendant is claiming entitlement to corresponding offsets and reimbursements, and that the Placer action is not a self-contained property-sale dispute. This argument is new and no evidence has been submitted concerning the positions taken by the parties in that case. New arguments and evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *People v. Williams* (1999) 20 Cal.4th 119, 129 [“moving party must carry the initial burden of informing its opponent and the court of the specific basis for its motion.”])

Plaintiff also presents no evidence suggesting the identity of any witnesses, either in this action or in the Placer County action. Accordingly, the Court cannot determine whether witnesses reside in Contra Costa County or elsewhere. Presumably, any expert related to value of the Truckee Property would be located there. In other words, plaintiff has not shown that transfer would favor convenience of the witnesses. Further, while plaintiff’s counsel is located in San Francisco and Foster City, defense counsel appears to be located in Truckee and Turlock. These locations do not clearly point to one venue as being the most efficient for counsel.

While plaintiff argues judicial resources will be conserved by initiating a transfer, this is not clear to the Court. Other methods exist for avoiding inconsistent rulings and judgments. For example, a court can implement a stay of proceedings where appropriate. They can also take judicial notice of the orders and judgments from other courts.

Based on plaintiff having failed to meet her burden on the motion here, the Court is unpersuaded that transferring and consolidating the Placer action in this Court is appropriate. Nonetheless, the Court encourages the parties to consider whether a voluntary stipulation to consolidate the matters in one of the venues is appropriate. If not resolved by such stipulation, the moving party may renew the motion if they believe any further information may address the shortcomings discussed above.

11. 9:00 AM CASE NUMBER: C26-00203
CASE NAME: RACHEL SHUMATE VS. DIEGO MIJARES
MOTION TO COMPEL ARBITRATION
FILED BY: LYFT INC.,
TENTATIVE RULING:

This motion has been **WITHDRAWN** by the moving party. See Notice of Withdrawal filed September 21, 2026.

12. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: FIRST CLASS PROPERTIES, LLC
TENTATIVE RULING:

On April 28, 2026, defendant First Class Properties, LLC (“Defendant”) filed a Motion to Strike portions of plaintiff Jessica Jackson’s (“Plaintiff”) Complaint (the “Motion to Strike”). The Motion to Strike was set for hearing on September 28, 2026.

Background and Analysis

No opposition was filed. However, Plaintiff filed a First Amended Complaint on August 25, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer or motion to strike before the hearing, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the motion was directed. See *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Motion to Strike off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike is ordered **OFF-CALENDAR** as moot.

13. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION - CONTINUED FROM
8/17/26
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

This matter is **CONTINUED** by the Court to October 19, 2026, 9:00 a.m. in Department 34.

14. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
STRIKE PORTIONS OF COMPLAINT - CONTINUED FROM
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Reflections Maintenance Association's (hereafter "Defendant" or "RMA") Motion to Strike attorney's fees. The Motion to Strike relates to Plaintiff's Complaint filed on March 27, 2026. Defendant requests to strike paragraph 8 in the prayer for relief.

For the following reasons, the Motion to Strike is **DENIED** in its entirety.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.) Defendant has satisfied its meet and confer requirement. (Code Civ. Proc. § 435.5)

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section

436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Attorneys' Fees

Pro per litigants are not entitled to recover attorney's fees. (*Trope v. Katz* (1995) 11 Cal.4th 274, 292.)

Defendant argues that Plaintiff prays for "reasonable attorney's fees and expenses to the extent authorized by statute." (Complaint, Prayer, ¶ 8.) Defendant posits that Plaintiff is proceeding in Pro Per and therefore has not incurred, and will not incur, attorney's fees.

However, Defendant cannot guarantee that Plaintiff will never incur attorneys' fees as Plaintiff can hire an attorney whenever he chooses.

Defendant secondly contends that Plaintiff has failed to plead either the existence of a statute which would provide for attorneys' fees or a contract.

The Complaint's First Cause of Action is brought in part under Civil Code section 5235 (Complaint ¶¶ 14, 17, 25), which governs a member's right to enforce inspection of association records. Section 5235 authorizes an award of reasonable costs and expenses, including reasonable attorneys' fees, to the prevailing member in such an enforcement action.

The Complaint does allege in its declaratory relief cause of action a situation where Civil Code section 5235 applies.

Conclusion

For the reasons analyzed above, the Motion to Strike is **DENIED** in its entirety

15. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
- CONTINUED FROM 8/17/26
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Reflections Maintenance Association's Demurrer to Plaintiff's Complaint filed on March 27, 2026. The Demurrer challenges the first and second causes of action for declaratory relief and injunctive relief.

For the reasons explained below, Defendant Reflections Maintenance Association's Demurrer to Plaintiff's first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

Meet and Confer Requirement

Defendant satisfies its meet and confer requirements in detailing its efforts in reaching out and speaking to Plaintiff's counsel via telephone on April 14, 2026, but the parties were unable to resolve the outstanding issues. (Gahan Decl. ¶ 2.)

Factual Allegations

The verified Complaint alleges as follows.

Plaintiff alleges that he owns Unit 22 within the RMA's condominiums in San Ramon, California. (Declaration of Jacob D. Colvin ("Colvin Decl."), Exhibit 1, Complaint, ¶¶ 1, 6.)

This instant "dispute arises from a special assessment," whereby the RMA sought collections including late fees and collection charges, and "threatened escalation against Plaintiff's account and property." (Complaint, ¶ 9.) The dispute also includes "related collection conduct." (Id.)

Since 2025, Plaintiff alleges that he "repeatedly requested inspection and review of election-related materials and related association records" to ascertain whether the special assessment was lawfully approved, whether voting and tally were valid, and "what charges were actually authorized." (Complaint, ¶ 10.) The RMA "did not provide the requested inspection in the form requested." (Complaint, ¶ 12.) Plaintiff does not allege the RMA refused to provide records—only that records were not provided in the specific "form" Plaintiff demanded. (Id.)

Plaintiff also alleges that an itemized ledger sufficient to validate disputed charges or viewing the records was not provided. (Complaint, ¶ 12.) Again here, Plaintiff does not allege that the ledger ever existed but was not produced; he simply alleges it was not produced. (Id.)

Plaintiff also alleges that when he requested that the RMA provide election records in a lawful and reasonably accessible manner, yet RMA demanded \$135 per hour for management effort and \$150 per hour for inspections. (Complaint, ¶ 12.) Plaintiff alleges that these "management or inspection fees" were improper." (Complaint, ¶ 26.)

Plaintiff finally alleges that while he has not received a pre-lien notice, he "believes [the RMA] may nevertheless contend that collection may continue or that pre-lien or lien steps(sic) may be taken." (Complaint, ¶ 20.) Plaintiff also raises concern that the RMA may take "pre lien, lien, foreclosure-related, or other collection-enforcement step on the disputed amounts." (Complaint, ¶ 25.)

Plaintiff and RMA completed internal dispute resolution though no agreement was reached. (Complaint, ¶ 21.) Plaintiff has since requested that collections be placed on hold and an inspection of election materials be arranged. (Id.) As a result of the ongoing dispute, he is now "at risk of additional late fees, collection fees, attorney's fees, lien-related action, foreclosure-related action, title cloud, and continuing coercive pressure before the underlying election and record-inspection dispute is resolved."

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

First Cause of Action for Declaratory Relief

A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) The “proper subjects” of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes. (Id.) The “actual controversy” language in Code of Civil Procedure section 1060 “encompasses a probable future controversy relating to the legal rights and duties of the parties” but “does not embrace controversies that are conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527.) An actual controversy must be “one which admits of definitive and conclusive relief by judgment within the field of judicial administration, as distinguished from an advisory opinion upon a particular or hypothetical state of facts.” (*Monterey Coastkeeper v. Central Coast Regional Water Quality Control Board* (2022) 76 Cal.App.5th 1.)

The fundamental basis of declaratory relief is “an actual, present controversy” (*In re Claudia E.* (2008) 163 Cal.App.4th 627.) Courts have emphasized that “the judgment must decree, not suggest, what the parties may or may not do.” (*Sanctity of Human Life Network v. California Highway Patrol* (2003) 105 Cal.App.4th 858.) This requirement prevents courts from issuing purely advisory opinions on hypothetical situations. (Id.)

In addition, when claims are based on mere fear or apprehension rather than concrete facts, courts find them unripe. In one case, a plaintiff’s assertion of entitlement to declaratory relief to ensure no future violations was rejected as “pure speculation, which is insufficient to support declaratory relief.” (*Artus v. Gramercy Towers Condominium Assn.* (2018) 19 Cal.App.5th 923.) The court emphasized that suggesting future events “could violate” the law, without more, does not satisfy the actual controversy requirement (Id.)

Here, Plaintiff cites multiple statutes arguing that he was denied access and inspection of election records, was unlawfully charged for the inspection of election records, and was not provided mandatory notice prior to recording a lien as grounds for his declaratory relief cause of action. To overcome a demurrer, Plaintiff must only show he has properly pled a proper claim for declaratory relief as to one of the stated grounds.

Charges for Inspection of Records

“Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.” (Code Civ. Proc. § 1060.)

This is a proper subject of declaratory relief because Plaintiff is seeking adjudication of legal rights or obligations of the parties, namely the rights of the parties as it pertains to the billing of hourly charges for inspection of voting records.

This is an actual controversy because Plaintiff alleges that the RMA “did not provide a lawful basis for

imposing generic hourly charges such as approximately \$135 per hour for management effort and approximately \$150 per hour for inspector effort as a condition of election-related inspection” in violation of Civil Code section 5205. (Complaint, ¶ 12.)

Defendant argues the critical distinction is that statutory restrictions on fees apply only to associations themselves, not to their vendors or management companies. Defendant cites to *Brown v. Professional Community Management, Inc.* (2005) 127 Cal.App.4th 532, where the court held that Section 1366.1 (now Section 56001) “by its terms applied only to associations, and did not limit fees of associations’ vendors such as property managers.”

The Complaint alleges that Civil Code section 5205 does not authorize the Association to impose general hourly review, management, or inspector charges as a condition of allowing inspection of ordinary association records. (Complaint, ¶ 13.)

This situation is different than the one in *Brown* because the plaintiff in *Brown* alleged and sued the homeowner’s association **and** management company over wrongful hourly fees, and in this instance, Plaintiff alleges and is only suing his homeowner’s association over wrongful hourly fees pursuant to Civil Code section 5205.

Plaintiff has successfully alleged a declaratory relief cause of action on the grounds that unlawful hourly rates were charged by Defendant to inspect the voting records. (Complaint, ¶¶ 12-13.)

Second Cause of Action for Injunctive Relief

Injunctive relief is a remedy, not a cause of action. (*Roberts v. Los Angeles County Bar Assn.* (2003) 105 Cal.App.4th 604, 618.) A cause of action must exist before a court may grant a request for injunctive relief. (*County of Del Norte v. City of Crescent City* (1999) 71 Cal.App.4th 965, 973.); *City of South Pasadena v. Department of Transportation* (1994) 29 Cal.App.4th 1280, 1293 [A permanent injunction is merely a remedy for a proven cause of action. It may not be issued if the underlying cause of action is not established.].)

Although an order sustaining a demurrer is proper because injunctive relief is not a cause of action, Plaintiff may still obtain injunctive relief if they prevail on a cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65-66.)

Conclusion

For the reasons analyzed above, Defendant Reflections Maintenance Association’s Demurrer to Plaintiff’s first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

16. 9:00 AM CASE NUMBER: MSC21-01176
CASE NAME: VAUGHNS VS MUSUKULA
STRIKE OR TAX COSTS
FILED BY: VAUGHNS, THOMAS
TENTATIVE RULING:

CONTINUED to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.

17. 9:00 AM CASE NUMBER: MSC21-01176

CASE NAME: VAUGHNS VS MUSUKULA

TAX PLAINTIFF'S COSTS

FILED BY: VELLABOYANA, ANURADHA

TENTATIVE RULING:

CONTINUED to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.

18. 9:00 AM CASE NUMBER: MSC21-02074

CASE NAME: BANERJEE VS. SEECUBIC INC

***HEARING ON MOTION IN RE: VACATE AND SET ASIDE ENTIRE DEFAULT AND DEFAULT JUDGMENT**

FILED BY:

TENTATIVE RULING:

On the Court's own motion, this hearing is **CONTINUED** to November 2, 2026 at 9:00 a.m. in this Department.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

***HEARING ON MOTION FOR DISCOVERY DETERMINATION OF THE AMOUNT OF MONETARY SANCTIONS**

FILED BY:

TENTATIVE RULING:

Defendants NFP Corporate Services (CA), Inc. and NFP CA Insurance Services, Inc. ("Defendants") filed three separate motions to compel further responses to discovery on December 30, 2025 (the "Motions to Compel Further Responses"). The Motions to Compel Further Responses was subsequently set for hearing on June 8, 2026. The Motions to Compel Further Responses were heard on June 8, 2026. See Order entered June 8, 2026 ("June 8th Order"). The Court ruled on the discovery matters at issue. *Id.*

The Court found that Plaintiff engaged in conduct that constituted misuse of the discovery process and that warranted the imposition of monetary sanctions (the "Monetary Sanctions"). See June 8th Order.

A briefing schedule was set for submission of further papers regarding the amount of the Monetary Sanctions and a further hearing was set on September 28, 2026.

Analysis

Defendants' supplemental declaration regarding Monetary Sanctions was filed on July 8, 2026. See Declaration of Brittany Rogers filed July 8, 2026 ("Rogers Decl."). The declaration summarizes scope of the work performed in connection with litigating the Motions to Compel Further Responses and the billing rates and hours for the various timekeepers doing that work. *Id.* at ¶13 *et seq.* A summary of hours worked, including narrative description of the work performed was proffered as well. *Id.* at **Exhibit A**. Also included was a declaration by prior counsel Annalisa Zulueta. *Id.* at **Exhibit B**. A total of

\$9,657.50 is sought. *Id.* at ¶10. Defendants' counsel indicates that they are utilizing rates below their "standard rates" typically charged. *Id.* at ¶8.

Plaintiff filed an opposition declaration on September 17, 2026. See Declaration of Eric Bryan Seuthe filed September 17, 2026 ("Seuthe Decl."). This declaration largely addresses tangential matters and fails to address, with particularity, the claimed expenses relating to the litigation of the subject Motions to Compel Further Responses.

The Court has considered the totality of the circumstances and concludes that Monetary Sanctions in the amount of \$6,175.00 are just and reasonable. In fixing said amount, the Court has considered all evidence in the record before the Court, including the further declarations submitted. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute, including, but not limited to, the substance of the underlying discovery dispute and the outcome achieved, as well as the Court's own independent review of the nature and extent of the claimed billings to litigate the matters.

Disposition

The Court further finds and orders as follows:

1. The Monetary Sanctions shall be paid by Plaintiff to Defendants in the sum of **\$6,175.00** within **sixty (60) calendar days** of notice of entry of this order.
2. Defendants shall issue the order after hearing.

20. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, SET ONE NOS. 4-5
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.

21. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE NO. 2.6(B)
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.

Law & Motion
Add On

22. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MASOUDI, ELISABETH B.

CIVIL

TENTATIVE RULING:

Before the Court is a demurrer by defendant Elisabeth Masoudi to the second amended complaint of plaintiff Robert Rodriguez.

Background

Plaintiff is a former attorney for defendant Elisabeth Masoudi who represented Masoudi in her dissolution proceeding in this Court, Case No. D13-03393 ("Dissolution Action"). (Second Am. Compl. ("2AC") ¶ 8.) Plaintiff alleges that beginning in or about April 2015, he served a written Notice of Attorney's Lien on his former client Masoudi, and he alleges it was "also noticed to" defendants Simona Yana Zakheim and Hyden Zakheim, LLP (the "Zakheim Defendants"). (2AC ¶ 8 and Exh. A [Notice of Attorney's Lien for Fees and Costs unfiled but dated April 14, 2015 with proof of service on Dante Miranda of Burns & Miranda].) Though not specifically alleged, by implication the Zakheim Defendants represented Masoudi in the Dissolution Action sometime after Plaintiff's representation ended.

Plaintiff filed suit against Masoudi in July 2019 for nonpayment of the attorneys' fees Plaintiff claims are owed to him pursuant to his fee agreement with Masoudi. (2AC ¶ 16.) Plaintiff alleges on July 7, 2024, for the first time Plaintiff discovered that Masoudi had obtained a substantial recovery from the dissolution proceeding and used, transferred or disposed of the proceeds without satisfying his attorney's lien. (2AC ¶ 18.) He alleges that defendants had exclusive knowledge of the facts and actively concealed the existence of the proceeds of the dissolution from him despite knowledge of his attorney's lien. (2AC ¶ 20.) Plaintiff's complaint initiating this action was filed May 16, 2025.

Plaintiff alleges nine causes of action on various theories for interference with his attorney's lien and failure to hold the assets from Masoudi's dissolution subject to his attorney's lien. His causes of action for intentional and negligent interference with prospective economic advantage (1st and 2nd C/As) are asserted only against the Zakheim Defendants. The claims for intentional and negligent misrepresentation (8th and 9th C/As) are asserted only against Masoudi. Plaintiff alleges causes of action for conversion (3rd C/A), civil conspiracy (4th C/A), equitable lien enforcement and accounting (5th C/A), constructive trust (6th C/A), and declaratory relief (7th C/A) against all defendants.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of*

Tulare (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.)

The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation omitted.] The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations omitted.]" (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [emphasis added].) (*See also Sarale v. Pacific Gas & Electric Co.* (2010) 189 Cal.App.4th 225, 245 [holding exhibit attached to the complaint contradicted the allegation that no easement existed, stating that the court accepts as true the facts appearing in exhibits attached to the complaint, and if the facts appearing in the exhibit "contradict those expressly pleaded, those in the exhibit are given precedence. [Citations.]" [Citation omitted.]]".)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurring Party's Request for Judicial Notice and Plaintiff's Opposition

Masoudi asks the Court to take judicial notice of (a) Plaintiff Rodriguez's verified complaint against her filed in July 2019 in the action *Rodriguez v. Masoudi*, Case No. MSC19-01309 ("First Masoudi Action") in this Court; (b) a Legal Services Agreement attached as Exhibit A to the complaint in the First Masoudi Action (sometimes referred to herein as the "fee agreement"); and (c) the Court's ruling issued March 21, 2025 in the First Masoudi Action ("Dismissal Order"), granting a motion by Masoudi and dismissing the action. (Masoudi RJN Exhs. 1-3.)

Plaintiff does not dispute the existence or genuineness of the documents subject to the RJN but objects to the Court taking judicial notice of the contents of the documents. The Court **GRANTS** the request, subject to the limitations in the case law regarding the Court's taking judicial notice of the content of those documents. (*See, e.g., StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of the existence of filed documents does not extend to the truth of the content of the documents where truth or interpretation of the content of the document is reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1563-156 [judicial notice of content of order includes judicial notice of the fact the court made certain findings or legal determinations but not the truth or accuracy of the findings or determinations where reasonably disputable].)

Plaintiff's Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of three documents: (a) Formal Opinion No. 2008-175 of

the State Bar of California Standing Committee on Professional Responsibility and Conduct; (b) property information for 2858 Miranda Avenue in Alamo from an internet website (believed to be Zillow) showing a "price history" with an October 2014 remark "listed for sale" and an August 2015 remark "listing removed"; and (c) a copy of a notice of appeal of the Dismissal Order. (Pl. RJN Exhs. A-C.) Masoudi does not oppose the request.

As to the Formal Opinion, the Court **GRANTS** the request to take judicial notice of the Formal Opinion, but only that the Formal Opinion was issued and not its legal effect, which is at most persuasive authority since the Court is not bound by an ethics opinion of the State Bar. (*Centex Homes v. St. Paul Fire & Marine Ins. Co.* (2018) 19 Cal. App. 5th 789, 801 [citing *Gafcon, Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1414].) The Court **GRANTS** the request to take judicial notice of the fact Plaintiff filed a notice of appeal of the Dismissal Order. (*StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.) The Court **GRANTS** the unopposed request, as the property is referenced in the 2AC, but not to the extent defendants may be able to dispute the truth of the contents. (Evid. Code § 452(h); *StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.)

Judicial Notice of Dissolution Action and First Masoudi Action

The Masoudi dissolution action is pleaded in the 2AC, and Plaintiff attaches a copy of an April 2015 Notice of Attorneys' Lien as Exhibit A to his 2AC. The Court takes judicial notice of the records contained in the Court's in the divorce action (Case No. MSD13-03393) and plaintiff's prior suit (Case No. MSC19-01309) to the fullest extent allowable by law. The Court may, in its discretion, *sua sponte* take judicial notice of court records, official acts of state legislative and executive departments, regulations and legislative enactments of public entities. (Evid. Code §§ 452(c) and 359; (See Evid. Code, §§ 452, subd. (c), 459; *Jones v. Whisenand* (2017) 8 Cal. App. 5th 543, 548 fn. 3 [citing *Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 37, fn. 2 [sua sponte judicial notice]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145.) While a court may take judicial notice of such documents, it may not take judicial notice of the truth of matters which are reasonably subject to dispute and therefore require formal proof. (*Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; *see also StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.)

Procedural Issue – Missing Tables

Demurring party's memorandum exceeds 10 pages but fails to include tables of contents and authorities in violation of Rule 3.1113 of the California Rules of Court. (Cal. R. Ct., Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].) The Court expects compliance with the rules in future filings.

Analysis

Masoudi demurs to each of the seven causes of action alleged against her (3rd-9th C/As) on the ground that the causes of action fail to allege fact sufficient to state the causes of action and on the ground that all causes of action are barred by the applicable statute of limitations.

A. Demurrers Based on Statute of Limitations

1. Legal Background

The applicable statute of limitations for the seven causes of action alleged against Masoudi generally range from two to three years. (Code Civ. Proc. §§ 338(c) [three years for an "action for taking, detaining, or injuring goods or chattels, including an action for the specific recovery of personal property"], 338(d) [three years for action for fraud or mistake, with claim not accruing "until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake"], and 339(1) [two years for a liability not founded on a writing].) Arguably, a four-year limitations period for a liability based on a writing (i.e., the fee agreement) or for the "catch-all" statute of limitations may apply to some of the causes of action, including the equitable accounting and declaratory relief causes of action. (Code Civ. Proc. §§ 337(a), 343.)

In any event, this lawsuit was filed May 16, 2025, and Masoudi contends Plaintiff was on notice of his claims regarding his attorney's lien since at least July 2019, making the claims time-barred under any of these limitations periods. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1317 [when the action would be barred regardless of the applicable statute of limitations, a dispute over the applicable statute of limitations does not preclude a demurrer].)

a. Accrual of Cause of Action and Delayed Discovery Rule

" 'Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citations omitted.] An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) "[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action. In that case, the statute of limitations for that cause of action will be tolled until such time as a reasonable investigation would have revealed its factual basis." (*Id.* at 803.)

"The discovery rule 'protects the plaintiff, whose cause of action is preserved when, despite diligent investigation, he is blamelessly ignorant of the cause of his injuries. It also protects the defendant, who is spared precipitous litigation.' [Citation omitted.] The discovery rule 'is based on the notion that statutes of limitations are intended to run against those who fail to exercise reasonable care in the protection and enforcement of their rights; therefore, those statutes should not be interpreted so as to bar a victim of wrongful conduct from asserting a cause of action before he could reasonably be expected to discover its existence.' [Citation omitted.] Thus, in actions where the rule applies, the limitations period does not accrue until the aggrieved party has notice of the facts constituting the injury. [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal.App.4th at 1318.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.] [¶] [T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that

injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Fox, supra*, 35 Cal.4th at 808-809 [emphasis added].)

"Notice may be actual or constructive. (Civ. Code, § 18.) Actual notice is 'express information of a fact,' while constructive notice is that 'which is imputed by law.' (*Ibid.*) A person with 'actual notice of circumstances sufficient to put a prudent man upon inquiry' is deemed to have constructive notice of all facts that a reasonable inquiry would disclose. (Civ. Code, § 19; see *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 439; 1 Schwing, Cal. Affirmative Defenses, *supra*, § 25:4, pp. 1340–1341 at fn. 28.)" (*E-Fab, Inc., supra*, 153 Cal. App. 4th at 1318-1319.) (See also Civ. Code § 19 ["Every person who has actual notice of circumstances sufficient to put a prudent person upon inquiry as to a particular fact has constructive notice of the fact itself in all cases in which, by prosecuting such inquiry, he or she might have learned that fact."].)

"A plaintiff need not be aware of the specific 'facts' necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111 [emphasis added].)

The Court in *E-Fab, Inc., supra*, noted that the Court in *Fox* reaffirmed that suspicion triggers inquiry notice. "For purposes of accrual of the limitations period, inquiry notice is triggered by suspicion. As the California Supreme Court explained in the *Jolly* case: 'Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights.' [Citation omitted.] The court recently reaffirmed the suspicion rule in *Fox*, saying 'under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action.' [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal. App. 4th at 1319 [emphasis added].)

The application of the discovery rule and whether Plaintiff exercised sufficient diligence is a question of law when the facts are undisputed. (*April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 833; *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal. 4th 1185, 1191 [" The application of the statute of limitations on undisputed facts is a purely legal question [citation omitted]"].) "[W]hen ever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law." [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal.App.4th at 1320 [emphasis added].)

b. Fiduciary Duties to Plaintiff Warranting Reduced Duty of Inquiry

The Zakheim Defendants may have had fiduciary duties to Plaintiff based on his attorney's lien. (See *Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156 ["When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party. Thus the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust."].) Between parties in a fiduciary relationship, the duty to investigate may be reduced. "[A]

fiduciary has a duty to make a full and fair disclosure of all facts which materially affect the rights and interest of the parties, and, where a fiduciary relationship exists, facts which would ordinarily require investigation may not excite suspicion. [Citations omitted.]" (*Bennett v. Hibernia Bank* (1956) 47 Cal. 2d 540, 559-560 [emphasis added].) (See also *Ferguson v. Yaspan* (2014) 233 Cal.App.4th 676, 683 ["'The existence of the fiduciary relationship limits the plaintiff's duty of inquiry by eliminating the plaintiff's usual duty to conduct due diligence, but it does not empower that plaintiff to "sit idly by" when "facts sufficient to arouse the suspicions of a reasonable [person] . . . " "come to his [or her] attention." [Citations.].' [Citations, some internal quotation marks omitted.]" (Emphasis added.); *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1394 ["A person in a fiduciary relationship may relax, but not fall asleep. 'If she became aware of facts which would make a reasonably prudent person suspicious, she had a duty to investigate further, and she was charged with knowledge of matters which would have been revealed by such an investigation.' [Citation omitted.]" (Emphasis added.)].)

c. Legal Implications of Prior Statements in Plaintiff's Verified Complaint in the First Masoudi Action

Plaintiff's complaint in the First Masoudi Action was verified. Under Code of Civil Procedure section 446, "[i]n all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party [¶] A person verifying a pleading need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters 'under penalty of perjury.'" (Code Civ. Proc. § 446(a).) The verification signed by Rodriguez attached to the complaint in the First Masoudi Action meets the requirements of the verification statute and is signed by him under penalty of perjury, as his 2AC in this case.

Plaintiff disputes that his allegations in his verified complaint in the First Masoudi Action constitute "judicial admissions" by which he is bound in this case, arguing that "judicial admissions" are binding only in the case in which they are made. He cites *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437. In essence, Plaintiff's position is that his factual allegations made in a verified pleading, signed by him under penalty of perjury, in the First Masoudi Action are not binding on him in this case. The Court rejects the argument to the extent that the factual allegations made in the verified 2AC in this case are contradicted by or are inconsistent with factual allegations made in the First Masoudi Action.

The *Minish* case is distinguishable in its context and facts, including because the plaintiff had been granted leave to amend her complaint in that case to eliminate certain language in prior pleadings "that had been included by mistake." (*Minish, supra*, 214 Cal.App.4th at 456 fn. 12 and 457 [notably, in which the court recognized the general rule that an amended pleading cannot contradict an admission in the original pleading].) To the extent that the Court in *Minish* can be interpreted as supporting that a pleading in a later case can contradict a factual admission made by the party in a pleading in a separate case, the Court relies on other decisions which hold to the contrary. The Court relies on the line of authority addressing the "truthful pleading" doctrine which it finds more specifically applicable to the issues in this case, to determine the effect of Plaintiff's prior verified

pleading in the First Masoudi Case and its impact on his verified 2AC in this case.

Under the truthful pleading doctrine, "[a] party is bound by the allegations in a verified complaint and may not assert contradictory facts in support of a contention that the statute of limitations is tolled. [Citation omitted.]" (*Schmidlin v. City of Palo Alto* (2007) 157 Cal. App. 4th 728, 791 [citing *Knoell v. Petrovich* (1999) 76 Cal.App.4th 164, 168–169, in which the appellant argued the statute of limitations was tolled until 1997, but the Court held he was bound by judicial admissions based on allegations in his original and first amended verified complaints that he did not discover, and could not have discovered, the wrongful acts until December 21, 1995, stating, "Because of the judicial admission, appellant cannot plead contradictory facts to toll the statute of limitations. [Citations omitted.]"].) (See also *Douglass v. Serenivision, Inc.* (2018) 20 Cal. App. 5th 376, 384 [allegation in petition to vacate arbitration award regarding service of award is "a 'judicial admission' that Douglass []'may not . . . contradict[]' [Citations, some internal quotation marks omitted.]"]].)

To the extent Plaintiff contends that the foregoing rules apply only in the context of pleadings filed in the same action, the Court rejects that contention under the truthful pleading rule as stated in *Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344 and *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877-878. The Court in *Larson* looked to the plaintiff's complaint and amended filed in an earlier action in assessing whether the plaintiff's allegations supporting his claims against a doctor in the later action were barred by the statute of limitations. The Court held the plaintiff was bound by the allegations in the earlier action, some of which he omitted in the later action and which demonstrated the claims were barred by the statute of limitations.

The Court in *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857 explained:

Both trial and appellate courts may properly take judicial notice of a party's earlier pleadings and positions as well as established facts from both the same case and other cases. [Citations omitted.] The complaint should be read as containing the judicially noticeable facts, "even when the pleading contains an express allegation to the contrary." [Citation omitted.] A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false. [Citation omitted.] Likewise, the plaintiff may not plead facts that contradict the facts or positions that the plaintiff pleaded in earlier actions or suppress facts that prove the pleaded facts false. [Citation omitted.]

" 'The principle is that of truthful pleading.' " [Citation, italics omitted.] When the plaintiff pleads inconsistently in separate actions, the plaintiff's complaint is nothing more than a sham that seeks to avoid the effect of a demurrer. [Citation omitted.] Under such circumstances, the court will disregard the falsely pleaded facts and affirm the demurrer.

(*Cantu, supra*, 4 Cal.App.4th at 877-878 [emphasis added].)

2. Plaintiff's Allegations and Admissions

The Court previously sustained a demurrer to the first amended complaint ("FAC") on the ground that the applicable statutes of limitations barred the claims based on the face of the FAC, and Plaintiff did not allege facts to support application of a doctrine that would delay or toll the accrual of the limitations period that would make the claims timely. Plaintiff has now included extensive allegations in the 2AC denying that he had any notice or knowledge that Masoudi or her counsel had recovered assets to which his attorneys' lien attached until July 7, 2024. (2AC ¶¶ 9-38.)

Plaintiff alleges the "precise timing, nature, and existence of" a recovery from a settlement or judgment or distribution "was not disclosed to Plaintiff" prior to July 7, 2024, when Masoudi allegedly admitted to him she received substantial proceeds from the dissolution action. (2AC ¶¶ 14, 18 [emphasis added].) Plaintiff alleges that the defendants concealed from him "material facts regarding the existence, timing, and disposition of proceeds," and that despite Plaintiff's demand for information, defendants "refused to disclose whether any recovery by way of settlement or judgment occurred, what sums were received, or how community property assets were distributed" to Masoudi. (2AC ¶¶ 20, 24.) He alleges the concealment was part of a "common plan" to impair his lien. (2AC ¶ 24.) Plaintiff alleges that the "family law matter and financial disclosures were handled privately" between Masoudi and her counsel such that he did not discover, and could not have discovered with due diligence, what recovery, settlement, or property transfer had occurred and what property distribution to Masoudi resulted in the dissolution proceeding to which his attorneys' lien might attach. (2AC ¶ 25.)

He asserts he detrimentally relied on the fact Masoudi's Alamo residence had not been sold and that no distribution had occurred in the family law case based on the "conduct, acts, concealments, and omissions" of the defendants presumably by defendants not making disclosures to him. (2AC ¶ 25.) He alleges that he "reasonably understood" that upon an attorney's receipt of a notice of his attorney's lien, the attorney would comply with duties not to conceal assets received that are subject to the attorney's lien and not to disburse funds or assets in violation of the known interest of Plaintiff as lienholder. (2AC ¶ 26.)

The Court considers Plaintiff's allegations in his verified complaint filed in the First Masoudi Action and its exhibit. Plaintiff attached to the verified complaint in that action a copy of the Legal Services Agreement with Masoudi on which he bases his attorneys' lien, which provides: "10. ATTORNEY'S LIEN. By signing and returning this fee agreement to Law Firm, Client grants Law Firm a lien for all unpaid attorney fees and costs advanced on all claims and causes of action that are the subject of Law Firm's representation of Client under this agreement and on all proceeds of any recovery obtained, whether by settlement, award, order, or judgment." (Masoudi RJN Exh. 1 [First Masoudi Action Ver. Compl. Exh. A, Legal Services Agreement ¶ 10 (emphasis added)].) Plaintiff's complete allegation in paragraph 11 of his complaint in the First Masoudi Action is: "At all relevant times, Plaintiff's claim is secured by an attorney's lien for services that has been completely disregarded by Defendant. Plaintiff is informed and believes and on that basis alleges thereon that discovery in this matter will reveal other causes of action. Plaintiff will seek leave of court to amend this Complaint when those causes of action are ascertained." (Masoudi RJN Exh. 1 [Verified Compl. in First Masoudi Action, ¶ 11 (emphasis added)].)

3. Implication of Plaintiff's Prior Admissions in His Verified Complaint and Information Disclosed by the Dissolution Action

First, delayed discovery must be pleaded with specific facts, not conclusory allegations. (*Fox, supra*, 35 Cal.4th at 808-809.) General allegations of Plaintiff's lack of knowledge, or "reason to suspect" that any recovery was made in the dissolution action (2AC ¶¶ 12, 14, 19) until July 7, 2024, 11 years after the dissolution action commenced, that the facts were "exclusively" in the defendants' knowledge, and that the defendants "concealed" facts, and that he "could not have discovered" the existence of any recovery (2AC ¶ 14) with reasonable diligence (2AC ¶ 24), are conclusory. Plaintiff does not allege any specific facts as to when or how he made alleged demands for information to any of the defendants, and he does not allege any specific facts regarding any "concealment" of the facts by any of the defendants amounting to anything more than nondisclosure.

The Court in *Jolly, supra*, cited *Miller v. Bechtel, Inc.* (1983) 33 Cal.3d 1983 as support for the proper application of the discovery rule in explaining that, "Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her. (*Jolly, supra*, 44 Cal.3d at 1110 [emphasis added].) *Miller v. Bechtel* involved an action by the plaintiff wife, among other things, to set aside a part of the marital settlement agreement on the grounds of her husband's misrepresentations regarding a community asset, the value of the stock in the corporation by which he was employed. The Court rejected the plaintiff's claim that she had no duty to investigate the valuation of stock she obtained in a marital settlement agreement because her husband "had an obligation as a fiduciary to provide her with full and correct information as to their worth. [Citation omitted.]" (*Id.* at 875.) The Court explained: "Even assuming the correctness of this assertion, however, if she became aware of facts which would make a reasonably prudent person suspicious, she had a duty to investigate further, and she was charged with knowledge of matters which would have been revealed by such an investigation. [Citation omitted.]" (*Id.* at 875.)

Among the facts cited by the California Supreme Court in holding the wife's claims were time-barred was that "[I]n 1972, plaintiff's attorney wrote Miller's counsel a number of times regarding implementation and interpretation of various provisions of the agreement. In October, he requested a copy of the shareholders' agreement and information 'as to the basis of valuation of the Bechtel shares.' Plaintiff then sought the advice of a third attorney who, in February 1973, reiterated the request made in the October letter, and threatened to file suit to obtain the information if it was not disclosed voluntarily. Such an action was not filed and, so far as the record shows, the information was not provided and the request was not renewed." (*Id.* at 873.) The wife submitted a declaration in opposition to the motion for summary judgment, attesting that she could not have obtained the information on the true stock valuation, "until [her ex-husband] redeemed it in 1977 because Bechtel was a 'closed' corporation which 'jealously guarded' its financial records.." (*Id.*)

In the face of these facts, the Court affirmed the trial court determination that her claim was time-barred. The Court elaborated: "The declarations establish without question that attorneys who represented plaintiff following Hamlin's withdrawal as her lawyer entertained serious doubts whether the value attributed to the stock in the property settlement agreement accurately reflected its "'true value.' They not only wrote Miller's lawyer on two separate occasions requesting a copy of the shareholders' agreement, but specifically sought information regarding the method used to establish

a value for the shares, and threatened to file suit if the information sought was not forthcoming. The first inquiry was made before the final decree of dissolution was entered, and the second seven months thereafter, well within the period of limitations. Since plaintiff's representatives chose not to pursue their inquiry further despite their suspicions, she is charged with knowledge of facts which would have been revealed if she had pursued the investigation. As we conclude above, we cannot assume that such an inquiry would have been unavailing. [¶] Moreover, although we do not suggest that a plaintiff in an action for fraud against a fiduciary is charged with knowledge which could have been gained by examining public records, in the present case, after plaintiff's suspicions had been aroused, she could have discovered, by consulting such records, that the value of the Bechtel stock had increased by 270 percent nine months after she signed the property settlement agreement, and one month before the final decree of dissolution was entered. This information, which could have been obtained without the necessity for legal process, would at the very least have reinforced plaintiff's doubts whether the "true value" of the stock was as represented in the property settlement agreement." (Id. at 875 [emphasis added].)

The Court finds the facts in the *Miller v. Bechtel* decision analogous to those present in this case that warrant the same determination that Plaintiff had inquiry notice of his potential claims at least as of July 2019 or earlier and could have obtained public records information that would have indicated that a judgment had been entered in 2017 in the Masoudi dissolution to which his lien attached and which inevitably would have resulted in some recovery to Masoudi based on the judgment in light of the community property laws made without satisfaction of his attorneys' lien. This is the context in which the Court places Plaintiff's allegation in his July 2019 verified complaint in the First Masoudi Action that Masoudi "completely disregarded" his attorney's lien. It is a factual admission the import of which is that he had a suspicion that Masoudi had received assets subject to his attorney's lien but did not satisfy his lien from her recovery.

Plaintiff argues that his complaint in the First Masoudi Action did not allege any impairment of his lien rights but only the right to a monetary judgment for breach of the Legal Services Agreement or alternative claims for quantum meruit and common counts for the recovery for the value of his services. (Masoudi RJN Exh. 1.) Plaintiff tries to parse the meaning of "disregarded" in his verified complaint in the First Masoudi Action. The term "disregarded," Plaintiff argues, means only "ignored" based on its dictionary definition, not that he was alleging that his lien had been "impaired" by Masoudi obtaining, using or transferring property in the face of his attorney's lien. But the allegation that Masoudi "disregarded" or "ignored" his lien is an allegation that admits Plaintiff had suspicions that he had suffered injury from a wrongful cause because Masoudi had made a recovery in the dissolution action in some manner without satisfying his lien, particularly when the allegation is considered in the context of the ensuing sentence that he was informed and believed he had additional causes of action that he would be able to confirm through discovery.

"Impairment" of Plaintiff's attorneys' lien is the consequence of Masoudi disregarding or ignoring his lien. The register of actions for the dissolution proceeding which Plaintiff could have readily obtained, particularly when he filed his Notice of Attorneys' Lien in that case in November 2019, more than six years after the dissolution commenced, showing the final judgment had been entered in the dissolution proceeding in 2017 is information that would have led a reasonable person, particularly a reasonable attorney, to suspect that Masoudi had obtained some recovery, some distribution of assets from the dissolution, even if the Alamo property had not been sold. Indeed, the fact that

Plaintiff was admittedly monitoring the status of any sale of the Alamo property is more evidence that Plaintiff was suspicious that assets would be disposed of in the dissolution proceeding without payment to him. The fact that Plaintiff was monitoring the Alamo property and the Alamo property was withdrawn from the market in 2015 would heighten a reasonable person's suspicion, particularly a reasonable divorce attorney's suspicion, that Masoudi was receiving a distribution of some other marital property since the house was not being sold and since Masoudi contends that he understood that was the principal source from which his lien would be satisfied. (Opp. p. 5, ;ll. 10-12, citing 2AC ¶¶ 9, 12-29.) Indeed, other evidence of Plaintiff's suspicion that he had lien rights that were being ignored (or impaired) is his filing and service on the Zakheim Defendants for the first time a Notice of Attorney's Lien in the Dissolution Action in November 2019 on the heels of his verified complaint initiating the First Masoudi Action.

Plaintiff has alleged that, despite his demands, Masoudi concealed information regarding the distribution she received, but the only specific facts Plaintiff alleges in this regard indicate the "concealment" consisted of a failure by Masoudi to affirmatively disclose information until July 7, 2024 when she directly advised him she had received funds and bought property. Masoudi's refusal to provide him any information regarding the results of the dissolution is itself a fact known to Plaintiff that would raise a reasonable suspicion that she had received assets and was not using the assets to pay her former attorney, thereby "disregarding" and as a consequence "impairing" Plaintiff's attorney's lien. (*Miller v. Bechtel, Inc.*, *supra*, 33 Cal.3d at 873, 875.)

Plaintiff's position is that his monitoring the Alamo property and demanding, and not receiving, disclosure of the outcome of 2013 dissolution action was sufficient "diligence." He in effect argues that no statute of limitations commenced on his lien impairment claim until he was directly told by Masoudi that she obtained a recovery 11 years after the dissolution commenced. Under Plaintiff's theory, if Masoudi had not made that direct disclosure to him in July 2024, the statute of limitations would never have commenced so long as the Alamo property remained unsold and no one told him Masoudi obtained a recovery in the dissolution. The only reasonable conclusion based on the facts alleged in the 2AC in this case, judicially noticeable allegations in First Masoudi Action, and judicially noticeable facts from the dissolution action is that Plaintiff had or should have reasonably had suspicions of injury and a wrongful cause, including an impairment of his attorney's lien, well over four years before May 16, 2025, and that he was not reasonably diligent in pursuing information and his claims, based on the information available to him and suspicions regarding the dissolution having concluded without his attorney's lien being honored as of 2017, eight years before this lawsuit.

The statute of limitations under the delayed discovery rule begins to accrue when the plaintiff has information that creates a suspicion of injury and a wrongful cause. (*E-Fab, Inc.*, *supra*, 153 Cal.App.4th at 1320.) That suspicion triggers a duty of inquiry and investigation, regardless of the existence of a fiduciary relationship; Plaintiff could not fall asleep on the existence of suspicious facts that he suffered injury based on a wrongful cause; he had a duty to investigate and pursue the facts. (*Jolly*, *supra*, 44 Cal.3d at 1111; *Fox*, *supra*, 35 Cal.4th at 808-809.)

Unlike the wife in *Miller v. Bechtel*, Plaintiff is an attorney. If his demands for information to Masoudi and the Zakheim Defendants were not being met with information regarding the judgment or settlement in the dissolution action, that refusal to provide him information itself would raise reasonable suspicion that his attorneys' lien had been "disregarded," that property had been

distributed to Masoudi without honoring his lien, and that his attorney's lien had been impaired because it was not satisfied out of any recovery, by settlement or judgment, from the dissolution proceeding. He had the ability to file suit for declaratory relief to obtain a determination that his lien was valid, and to fix the amount, a prerequisite to its enforcement, as well as a determination of what property his attorney's lien attached to and its priority. (See, e.g., *Cetenko v. United California Bank* (1982) 30 Cal.3d 528, 531–534; *Waltrip v. Kimberlin* (2008) 164 Cal.App.4th 517, 525 [citing *Cetenko*]; *Brown v. Superior Court* (2004) 116 Cal.App.4th 320, 323–324 [priority dispute between attorney lien holder and judgment creditor; attorney must establish validity and amount of attorney lien before priority dispute can be determined].)

The delayed discovery rule does not provide that the statute of limitations begins to accrue when the plaintiff obtains the facts or evidence to support the elements of his cause of action. Plaintiff clearly knew since at least July 2015, or earlier based on the April 2015 notice of attorneys' lien attached to the 2AC₂ that he had not been paid for his services and that he had lien rights to recover what he claimed to be owed from any recovery Masoudi obtained in the dissolution proceeding. He knew that Masoudi's dissolution proceeding had been pending since 2013. He sued Masoudi in the First Masoudi Action in 2019, six years after the dissolution proceeding began, four years after he was discharged from the case, and two years after the final dissolution judgment. The passage of time alone from the time the dissolution proceeding began is information that was known to Plaintiff that would have or should have raised a suspicion to a reasonable person, particularly an attorney, that by no later than six years later in 2019, the dissolution proceeding had resulted in a recovery of assets by Masoudi by a final judgment or settlement from which he had not been paid despite his attorneys' lien. The only reasonable conclusion under the facts alleged and circumstances highlighted is that this suspicion of a recovery by Masoudi from the dissolution without satisfaction of his attorney's lien, which as a consequence resulted in the impairment of his lien, underlies the allegation that Masoudi "disregarded" his lien and the allegation in the second sentence of paragraph 11 of his verified complaint, and the suspicion was the basis for his information and belief that he had additional causes of action. (Masoudi RJN Exh. 1 [First Masoudi Action Ver. Compl. ¶ 11].)

Plaintiff cites no authority that Masoudi herself owed fiduciary duties to Plaintiff, her former, discharged lawyer, so as to limit Plaintiff's duty of inquiry regarding any claims he had against her. Masoudi was not an agent of the Zakheim Defendants who Plaintiff alleges owed him fiduciary duties. (Compare to *American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1474 ["Following *Applied Equipment Corp.*, this court held in *Kidron v. Movie Acquisition Corp.* (1995) 40 Cal.App.4th 1571 that '[a] nonfiduciary cannot conspire to breach a duty owed only by a fiduciary.' [Citations omitted.]".) Plaintiff cites no authority that, even if there is a fiduciary duty owed to Plaintiff by the Zakheim Defendants which might limit a duty of inquiry for claims against the fiduciary, that fact limits Plaintiff's duty of inquiry on claims against a separate, non-fiduciary defendant, his former client, even if the non-fiduciary defendant allegedly acted as a co-conspirator with the fiduciary. Further, as in *Miller v. Bechtel, supra*, regardless of any fiduciary relationship, once Plaintiff had information warranting a suspicion of his injury and its wrongful cause, he was under a duty to investigate and find the facts, and the statute of limitations began to accrue. (*Alfaro, supra*, 171 Cal.App.4th at 1394.)

The Court concludes that reasonable minds could only conclude from the present facts that Plaintiff's claims against Masoudi accrued by July 1, 2019 at the latest, under the circumstances. Plaintiff's

claims against Masoudi are time-barred. The demurrer based on the statute of limitations as to all causes of action against Masoudi is **SUSTAINED**.

B. Demurrers on Other Grounds

Having concluded that all claims against Masoudi are barred by the applicable statutes of limitations, the Court need not address other grounds raised in the demurrer.

Conclusion and Ruling

Masoudi's general demurrer to all causes of action alleged against her based on the statute of limitations is **SUSTAINED, WITHOUT LEAVE TO AMEND**. Having had the opportunity to allege facts to demonstrate the claims did not accrue until a time within the statute of limitations based on the filing of the complaint in this case on May 16, 2025, and having failed to do so based on the facts alleged, the Court finds no basis to grant leave to amend under the circumstances.

23. 9:00 AM CASE NUMBER: C25-01397 CIVIL

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT - CONTINUED FROM 9/14/26

FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

Before the Court is a demurrer by defendants Simona Zaheim and Hyden Zakheim, LLP to the second amended complaint of plaintiff Robert Rodriguez.

Background

Plaintiff is a former attorney for defendant Elisabeth Masoudi who represented Masoudi in her dissolution proceeding in this Court, Case No. D13-03393 ("Dissolution Action"). (Second Am. Compl. ("2AC") ¶ 8.) Plaintiff alleges that beginning in or about April 2015, he served a written Notice of Attorney's Lien on his former client Masoudi, and he alleges it "was also noticed" to defendants Simona Yana Zakheim and Hyden Zakheim, LLP (the "Zakheim Defendants"). (2AC ¶ 8 and Exh. A [Notice of Attorney's Lien for Fees and Costs unfiled but dated April 14, 2015 with proof of service on Dante Miranda of Burns & Miranda].) Though not specifically alleged, by implication the Zakheim Defendants represented Masoudi in the Dissolution Action sometime after Plaintiff's representation ended.

Plaintiff filed suit against Masoudi in July 2019 for nonpayment of the attorneys' fees Plaintiff claims are owed to him pursuant to his Legal Services Agreement with Masoudi. (2AC ¶ 16.) Plaintiff alleges on July 7, 2024, for the first time Plaintiff discovered that Masoudi had obtained a substantial recovery from the dissolution proceeding and used, transferred or disposed of the proceeds without satisfying his attorney's lien. (2AC ¶ 18.) He alleges that defendants had exclusive knowledge of the facts and actively concealed the existence of the proceeds of the dissolution from him despite

knowledge of his attorney's lien. (2AC ¶ 20.) Plaintiff filed the complaint initiating this action May 16, 2025.

Plaintiff alleges nine causes of action on various theories for interference with his attorney's lien and failure to hold the assets from Masoudi's dissolution subject to his attorney's lien. His causes of action for intentional and negligent interference with prospective economic advantage (1st and 2nd C/As) are asserted only against the Zakheim Defendants. The claims for intentional and negligent misrepresentation (8th and 9th C/As) are asserted only against Masoudi. Plaintiff alleges causes of action for conversion (3rd C/A), civil conspiracy (4th C/A), equitable lien enforcement and accounting (5th C/A), constructive trust (6th C/A), and declaratory relief (7th C/A) against all defendants.

Legal Standards for Ruling on Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.)

The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.) (*See also Evans, supra*, 38 Cal.4th at 6.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation omitted.] The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. [Citations omitted.]" (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 [emphasis added].) (*See also Sarale v. Pacific Gas & Electric Co.* (2010) 189 Cal.App.4th 225, 245 [holding exhibit attached to the complaint contradicted the allegation that no easement existed, stating that the court accepts as true the facts appearing in exhibits attached to the complaint, and if the facts appearing in the exhibit "contradict those expressly pleaded, those in the exhibit are given precedence. [Citations.] [Citation omitted.]".])

A general demurrer may be sustained when the facts alleged show the action is barred by the statute of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Demurring Parties' Request for Judicial Notice and Plaintiff's Opposition

The Zakheim Defendants ask the Court to take judicial notice of (a) Plaintiff Rodriguez's verified complaint against Masoudi filed in July 2019 in the action *Rodriguez v. Masoudi*, Case No. MSC19-01309 ("First Masoudi Action") in this Court; (b) the Court's register of actions (referred to as the docket in the RJN) for the dissolution action *Masoudi v. Masoudi*, D13-03393; and (c) Masoudi's RJN filed October 15, 2025 in support of Masoudi's demurrer to the first amended complaint ("FAC") in this case, which in turn includes the verified complaint in the First Masoudi Action and a copy of the

Court's ruling issued March 21, 2025 in the First Masoudi Action ("Dismissal Order") granting a motion by Masoudi and dismissing the action. (Zakheim Defs. RJN Exhs. 1-3.)

Plaintiff does not dispute the existence or genuineness of the documents subject to the RJN but objects to the Court taking judicial notice of the contents of the documents. The Court **GRANTS** the request, subject to the limitations in the case law regarding the Court's taking judicial notice of the content of those documents. (*See, e.g., StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of the existence of filed documents does not extend to the truth of the content of the documents where truth or interpretation of the content of the document is reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1563-156 [judicial notice of content of order includes judicial notice of the fact the court made certain findings or legal determinations but not the truth or accuracy of the findings or determinations where reasonably disputable].)

Plaintiff's Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of three documents: (a) Formal Opinion No. 2008-175 of the State Bar of California Standing Committee on Professional Responsibility and Conduct; (b) property information for 2858 Miranda Avenue in Alamo from an internet website (believed to be Zillow) showing a "price history" with an October 2014 remark "listed for sale" and an August 2015 remark "listing removed"; and (c) a copy of a notice of appeal of the Dismissal Order. (Pl. RJN Exhs. A-C.) Masoudi does not oppose the request. As to the Formal Opinion, the Court **GRANTS** the request to take judicial notice of the Formal Opinion, but only that the Formal Opinion was issued and not its legal effect, which is at most persuasive authority since the Court is not bound by an ethics opinion of the State Bar. (*Centex Homes v. St. Paul Fire & Marine Ins. Co.* (2018) 19 Cal. App. 5th 789, 801 [citing *Gafcon, Inc. v. Ponsor & Associates* (2002) 98 Cal.App.4th 1388, 1414].) The Court **GRANTS** the request to take judicial notice of the fact Plaintiff filed a notice of appeal of the Dismissal Order. (*StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.) The Court **GRANTS** the unopposed request, as the property is referenced in the 2AC, but not to the extent defendants may be able to dispute the truth of the contents. (Evid. Code § 452(h); *StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.)

Judicial Notice of Dissolution Action and First Masoudi Action

The Masoudi dissolution action is pleaded in the 2AC, and Plaintiff attaches a copy of an April 2015 Notice of Attorneys' Lien as Exhibit A to his 2AC. The Court takes judicial notice of the records contained in the Court's files in the divorce action (Case No. MSD13-03393) and plaintiff's prior suit (Case No. MSC19-01309) to the fullest extent allowable by law. The Court may, in its discretion, *sua sponte* take judicial notice of court records. (Evid. Code §§ 452(c) and 259; *Jones v. Whisenand* (2017) 8 Cal. App. 5th 543, 548 fn. 3 [citing *Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 37, fn. 2 [*sua sponte* judicial notice]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145.) While a court may take judicial notice of such documents, it may not take judicial notice of the truth of matters which are reasonably subject to dispute and therefore require formal proof. (*Kilroy v. State of California, supra*, 119 Cal.App.4th at 145; *see also StorMedia, Inc., supra*, 20 Cal.4th at 457, fn. 9; *Fremont Indemnity Co., supra*, 148 Cal.App.4th at 113-115.)

Analysis

Defendants' demurrer is made on two primary grounds: that Plaintiff does not have a valid attorney's lien as a matter of law for several reasons, which in turn means that he cannot allege damages which are an essential element of his claims, and that the claims are all barred by the statute of limitations as shown by his lawsuit against Elisabeth Masoudi filed in 2019, which was dismissed in 2025.

A. Demurrers Based on Statute of Limitations

1. Legal Background

The demurring parties generally contend that the applicable statute of limitations for the seven causes of action alleged against them range from two to three years. (Code Civ. Proc. § 339(1) [two years for a liability not founded on a writing for interference causes of action], Code Civ. Proc. § 338(c) [three years for an "action for taking, detaining, or injuring goods or chattels, including an action for the specific recovery of personal property"], 338(d) [three years for action for fraud or mistake, with claim not accruing "until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake," possibly based on the civil conspiracy cause of action].) Arguably, a four-year limitations period for a liability based on a writing (the fee agreement or notice of attorney's lien) or for the "catch-all" statute of limitations may apply to some of the causes of action, including the equitable accounting and declaratory relief causes of action. (Code Civ. Proc. §§ 337(a), 343.)

In any event, this lawsuit was filed May 16, 2025, and the demurring parties contend Plaintiff was on notice of his claims regarding his attorney's lien since at least July 2019, making the claims time-barred under any of these limitations periods. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1317 [when the action would be barred regardless of the applicable statute of limitations, a dispute over the applicable statute of limitations does not preclude a demurrer].)

a. Accrual of Cause of Action and Delayed Discovery Rule

" 'Generally speaking, a cause of action accrues at 'the time when the cause of action is complete with all of its elements.' [Citations omitted.] An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806-807.) "[U]nder the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action. In that case, the statute of limitations for that cause of action will be tolled until such time as a reasonable investigation would have revealed its factual basis." (*Id.* at 803.)

"The discovery rule 'protects the plaintiff, whose cause of action is preserved when, despite diligent investigation, he is blamelessly ignorant of the cause of his injuries. It also protects the defendant, who is spared precipitous litigation.' [Citation omitted.] The discovery rule 'is based on the notion that statutes of limitations are intended to run against those who fail to exercise reasonable care in the protection and enforcement of their rights; therefore, those statutes should not be interpreted so as to bar a victim of wrongful conduct from asserting a cause of action before he could reasonably be

expected to discover its existence.' [Citation omitted.] Thus, in actions where the rule applies, the limitations period does not accrue until the aggrieved party has notice of the facts constituting the injury. [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal.App.4th at 1318.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.]" In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.] [¶] [T]o employ the discovery rule to delay accrual of a cause of action, a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period." (*Fox, supra*, 35 Cal.4th at 808-809 [emphasis added].)

"Notice may be actual or constructive. (Civ. Code, § 18.) Actual notice is 'express information of a fact,' while constructive notice is that 'which is imputed by law.' (*Ibid.*) A person with 'actual notice of circumstances sufficient to put a prudent man upon inquiry' is deemed to have constructive notice of all facts that a reasonable inquiry would disclose. (Civ. Code, § 19; *see Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 439; 1 Schwing, Cal. Affirmative Defenses, *supra*, § 25:4, pp. 1340–1341 at fn. 28.)" (*E-Fab, Inc., supra*, 153 Cal. App. 4th at 1318-1319.) (*See also* Civ. Code § 19 ["Every person who has actual notice of circumstances sufficient to put a prudent person upon inquiry as to a particular fact has constructive notice of the fact itself in all cases in which, by prosecuting such inquiry, he or she might have learned that fact."].)

"A plaintiff need not be aware of the specific 'facts' necessary to establish the claim; that is a process contemplated by pretrial discovery. Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111 [emphasis added].)

The Court in *E-Fab, Inc., supra*, noted that the Court in *Fox* reaffirmed that suspicion triggers inquiry notice. "For purposes of accrual of the limitations period, inquiry notice is triggered by suspicion. As the California Supreme Court explained in the *Jolly* case: 'Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights.' [Citation omitted.] The court recently reaffirmed the suspicion rule in *Fox*, saying 'under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action.' [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal. App. 4th at 1319 [emphasis added].)

The application of the discovery rule and whether Plaintiff exercised sufficient diligence is a question

of law where the facts are undisputed. (*April Enterprises, Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 833; *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal. 4th 1185, 1191 ["The application of the statute of limitations on undisputed facts is a purely legal question [citation omitted]"]) "[W]henever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law." [Citation omitted.]" (*E-Fab, Inc., supra*, 153 Cal.App.4th at 1320 [emphasis added].)

b. Fiduciary Relationship Affecting Duty of Inquiry

Plaintiff alleges and cites authority supporting that the Zakheim Defendants had fiduciary duties to Plaintiff based on his attorney's lien. (*See Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156 ["When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party. Thus the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust."].) Between parties in a fiduciary relationship, the duty to investigate may be reduced. "[A] fiduciary has a duty to make a full and fair disclosure of all facts which materially affect the rights and interest of the parties, and, where a fiduciary relationship exists, facts which would ordinarily require investigation may not excite suspicion. [Citations omitted.]" (*Bennett v. Hibernia Bank* (1956) 47 Cal. 2d 540, 559-560 [emphasis added].) (*See also Ferguson v. Yaspan* (2014) 233 Cal.App.4th 676, 683 ["The existence of the fiduciary relationship limits the plaintiff's duty of inquiry by eliminating the plaintiff's usual duty to conduct due diligence, but it does not empower that plaintiff to "sit idly by" when "facts sufficient to arouse the suspicions of a reasonable [person] . . . "come to his [or her] attention." [Citations.].] [Citations, some internal quotation marks omitted.]" (Emphasis added.); *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1394 ["A person in a fiduciary relationship may relax, but not fall asleep. '[I]f she became aware of facts which would make a reasonably prudent person suspicious, she had a duty to investigate further, and she was charged with knowledge of matters which would have been revealed by such an investigation.' [Citation omitted.]" (Emphasis added.)).]

Another court has explained in the effect of a fiduciary relationship on the duty of inquiry as follows:

" '[W]hen a potential plaintiff is in a fiduciary relationship with another individual, that plaintiff's burden of discovery is reduced and he is entitled to rely on the statements and advice provided by the fiduciary.' " [Citation omitted.] But, even assuming for the sake of argument that each of the respondents had a fiduciary duty to plaintiffs, this does not mean that plaintiffs had no duty of inquiry if they were put on notice of a breach of such duty.

(*WA Southwest 2, LLC v. First American Title Ins. Co.* (2015) 240 Cal.App.4th 148, 157, 158 [emphasis added, holding "reasonable diligence" with respect to an investment "does not consist of ignoring a private placement memorandum received prior to making an investment"].)

c. Fraudulent Concealment

In addition to the delayed discovery rule, Plaintiff relies on the separate legal doctrine of equitable tolling of the statute of limitations based on defendants' concealment of the facts which would give rise to the causes of action alleged in the 2AC. (2AC ¶¶ 27, 28.) "Equitable tolling "halts the running of the limitations period so long as the plaintiff uses reasonable care and diligence in attempting to

learn the facts that would disclose the defendant's fraud or other misconduct." ' [Citation omitted.]

To establish equitable tolling based on fraudulent concealment, " 'a plaintiff must prove the following elements: fraudulent conduct by the defendant resulting in concealment of the operative facts, failure of the plaintiff to discover the operative facts that are the basis of its cause of action within the limitations period, and due diligence by the plaintiff until discovery of those facts.' " [Citation omitted.]' " (*Howard Jarvis Taxpayers Assn. v. Coachella Valley Water Dist.* (2025) 116 Cal. App. 5th 520, 554 [emphasis added].)

d. Equitable Estoppel

The Court in *Lantzy v. Centex Homes* (2003) 31 Cal.4th 363 cited by Plaintiff explains the doctrine of equitable estoppel as applied to the statute of limitations. "One aspect of equitable estoppel is codified in Evidence Code section 623, which provides that '[w]henver a party has, by his own statement or conduct, intentionally and deliberately led another to believe a particular thing true and to act upon such belief, he is not, in any litigation arising out of such statement or conduct, permitted to contradict it.' [Citation omitted.] But ' "[a]n estoppel may arise although there was no designed fraud on the part of the person sought to be estopped. [Citation.] To create an equitable estoppel, 'it is enough if the party has been induced to refrain from using such means or taking such action as lay in his power, by which he might have retrieved his position and saved himself from loss.' . . . ' . . . Where the delay in commencing action is induced by the conduct of the defendant it cannot be availed of by him as a defense.' " ' [Citations omitted.]" (*Id.* at 384.)

2. Legal Implications of Prior Statements in Plaintiff's Verified Complaint in the First Masoudi Action

Plaintiff's complaint in the First Masoudi Action was verified. Under Code of Civil Procedure section 446, "[i]n all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party . . . [¶] A person verifying a pleading need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters 'under penalty of perjury.'" (Code Civ. Proc. § 446(a).) The verification signed by Rodriguez attached to the complaint in the First Masoudi Action meets the requirements of the verification statute and is signed by him under penalty of perjury, as his 2AC in this case.

Plaintiff disputes that his allegations in his verified complaint in the First Masoudi Action constitute "judicial admissions" by which he is bound in this case, arguing that "judicial admissions" are binding only in the case in which they are made. He cites *Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437. In essence, Plaintiff's position is that his factual allegations made in a verified pleading, signed under penalty of perjury, in the First Masoudi Action are not binding on him in this case. The Court rejects the argument to the extent that the factual allegations made in the verified 2AC in this case are contradicted by or are inconsistent with factual allegations made in the First Masoudi Action.

The *Minish* case is distinguishable in its context and facts, including that the plaintiff was granted leave to amend her complaint to eliminate certain language in prior pleadings "that had been included by mistake." (*Minish, supra*, 214 Cal.App.4th at 456 fn. 12 and 457 [in which the court

recognized the general rule that an amended pleading cannot contradict an admission in the original pleading[.] To the extent that the Court in *Minish* can be interpreted as supporting that a pleading in a later case can contradict a factual admission made by the party in a pleading in a separate case, the Court relies on other decisions which hold to the contrary. The Court relies on the line of authority addressing the "truthful pleading" doctrine which it finds more specifically applicable to the issues in this case, to determine the effect of Plaintiff's prior verified pleading in the First Masoudi Case and its impact on his verified 2AC in this case.

Under the truthful pleading doctrine, "[a] party is bound by the allegations in a verified complaint and may not assert contradictory facts in support of a contention that the statute of limitations is tolled. [Citation omitted.]" (*Schmidlin v. City of Palo Alto* (2007) 157 Cal. App. 4th 728, 791 [citing *Knoell v. Petrovich* (1999) 76 Cal.App.4th 164, 168–169, in which the appellant argued the statute of limitations was tolled until 1997, but the Court held he was bound by judicial admissions based on allegations in his original and first amended verified complaints that he did not discover, and could not have discovered, the wrongful acts until December 21, 1995, stating, "Because of the judicial admission, appellant cannot plead contradictory facts to toll the statute of limitations. [Citations omitted.]"].) (See also *Douglass v. Serenivision, Inc.* (2018) 20 Cal. App. 5th 376, 384 [allegation in petition to vacate arbitration award regarding service of award is "a 'judicial admission' that Douglass []'may not . . . contradict[.]' [Citations, some internal quotation marks omitted.]"].)

To the extent Plaintiff contends that the foregoing rules apply only in the context of pleadings filed in the same action, the Court rejects that contention under the truthful pleading rule as stated in *Larson v. UHS of Rancho Palm Springs* (2014) 230 Cal.App.4th 336, 343-344 and *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 877-878. The Court in *Larson* looked to the plaintiff's complaint and amended filed in an earlier action in assessing whether the plaintiff's allegations supporting his claims against a doctor in the later action were barred by the statute of limitations. The Court held the plaintiff was bound by the allegations in the earlier action, some of which he omitted in the later action, which demonstrated the claims were barred by the statute of limitations.

The Court in *Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857 explained:

Both trial and appellate courts may properly take judicial notice of a party's earlier pleadings and positions as well as established facts from both the same case and other cases. [Citations omitted.] The complaint should be read as containing the judicially noticeable facts, "even when the pleading contains an express allegation to the contrary." [Citation omitted.] A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false. [Citation omitted.] Likewise, the plaintiff may not plead facts that contradict the facts or positions that the plaintiff pleaded in earlier actions or suppress facts that prove the pleaded facts false. [Citation omitted.]

" 'The principle is that of truthful pleading.' " [Citation, italics omitted.] When the plaintiff pleads inconsistently in separate actions, the plaintiff's complaint is nothing more than a sham that seeks to

avoid the effect of a demurrer. [Citation omitted.] Under such circumstances, the court will disregard the falsely pleaded facts and affirm the demurrer.

(*Cantu, supra*, 4 Cal.App.4th at 877-878.)

4. Plaintiff's Allegations and Admissions

The Court previously sustained a demurrer to the FAC on the ground that the applicable statutes of limitations barred the claims based on the face of the FAC, and Plaintiff did not allege facts to support application of the delayed discovery rule, equitable tolling, or any similar theory that would make the claims timely. Plaintiff has now included extensive allegations in the 2AC denying that he had any notice or knowledge that Masoudi or her counsel had recovered assets to which his attorneys' lien attached until July 7, 2024. (2AC ¶¶ 9-38.)

Plaintiff alleges the "precise timing, nature, and existence of" a recovery from a settlement or judgment or distribution "was not disclosed to Plaintiff" prior to July 7, 2024, when Masoudi allegedly admitted to him she received substantial proceeds from the dissolution action. (2AC ¶¶ 14, 18.) Plaintiff alleges that the defendants concealed from him "material facts regarding the existence, timing, and disposition of proceeds," and that despite Plaintiff's demand for information, defendants "refused to disclose whether any recovery by way of settlement or judgment occurred, what sums were received, or how community property assets were distributed" to Masoudi. (2AC ¶¶ 20, 24.) He alleges the concealment was part of a "common plan" to impair his lien. (2AC ¶ 24.) Plaintiff alleges that the "family law matter and financial disclosures were handled privately" between Masoudi and her counsel such that he did not discover, and could not have discovered with due diligence, what recovery, settlement, or property transfer had occurred and what property distribution to Masoudi resulted in the dissolution proceeding to which his attorneys' lien might attach. (2AC ¶ 25.)

He asserts he detrimentally relied on the fact Masoudi's Alamo residence had not been sold and that no distribution had occurred in the family law case based on the "conduct, acts, concealments, and omissions" of the defendants presumably by defendants not making disclosures to him. (2AC ¶ 25.) He alleges that he "reasonably understood" that upon an attorney's receipt of a notice of his attorney's lien, the attorney would comply with duties not to conceal assets received that are subject to the attorney's lien and not to disburse funds or assets in violation of the known interest of Plaintiff as lienholder. (2AC ¶ 26.)

The Court considers Plaintiff's allegations in his verified complaint filed in the First Masoudi Action and its exhibit. Plaintiff attached to the verified complaint in that action a copy of the Legal Services Agreement with Masoudi on which he bases his attorneys' lien, which provides: "10. ATTORNEY'S LIEN. By signing and returning this fee agreement to Law Firm, Client grants Law Firm a lien for all unpaid attorney fees and costs advanced on all claims and causes of action that are the subject of Law Firm's representation of Client under this agreement and on all proceeds of any recovery obtained, whether by settlement, award, order, or judgment." (Masoudi RJN Exh. 1 [First Masoudi Action Ver. Compl. Exh. A, Legal Services Agreement ¶ 10 (emphasis added)].) Plaintiff's complete allegation in paragraph 11 of his complaint in the First Masoudi Action is: "At all relevant times, Plaintiff's claim is secured by an attorney's lien for services that has been completely disregarded by Defendant. Plaintiff is informed and believes and on that basis alleges thereon that discovery in this matter will reveal other causes of action. Plaintiff will seek leave of court to amend this Complaint when those causes of

action are ascertained." (Masoudi RJN Exh. 1 [Verified Compl. in First Masoudi Action, ¶ 11 (emphasis added)].)

5. Implication of Plaintiff's Prior Admissions in His Verified Complaint and Information Disclosed by the Dissolution Action

Plaintiff's 2AC and the matters subject to judicial notice indisputably demonstrate at least two things. As of no later than July 2019 when he filed suit against his former client Masoudi, Rodriguez knew at least four things material to the statute of limitations: (1) Masoudi had been a party to a dissolution proceeding that commenced in 2013 in which he rendered services and out of which his alleged attorney's lien arose, (2) as of mid-2015, he had been discharged as Masoudi's counsel, and Masoudi allegedly owed him money for services in her dissolution proceeding that remained unpaid that he was suing her to fix the amount owed and collect, (3) based on the terms of Plaintiff's fee agreement with Masoudi, Plaintiff had a attorney's lien for his fees "on all proceeds of any recovery obtained, whether by settlement, award, order, or judgment" in the dissolution action, (4) Plaintiff's claims in this action allege an impairment of his attorney's lien based on Masoudi's recovery of assets from the dissolution, and the Zakheim Defendants' failure to reserve or satisfy Plaintiff's lien from the recovery where a final judgment in the dissolution action was entered in 2017, and (5) Plaintiff did not file this action under May 16, 2025, almost 12 years after the dissolution proceeding commenced and eight years after the final dissolution judgment was entered. (Zakheim Defs. RJN Exh. 1 [First Masoudi Action Ver. Compl. ¶ 8 and Exh. A]; 2AC ¶ 8; Zakheim Defs. RJN Exh. 2.)

Delayed discovery must be pleaded with specific facts, not conclusory allegations. (*Fox, supra*, 35 Cal.4th at 808-809.) General allegations of his lack of knowledge, or "reason to suspect" that any recovery was made in the dissolution action (2AC ¶¶ 12, 14, 19) until July 7, 2024, 11 years after the dissolution action commenced, that the facts were "exclusively" in the defendants' knowledge, and that the defendants "concealed" facts, and that he "could not have discovered" the existence of any recovery (2AC ¶ 14) with reasonable diligence (2AC ¶ 24), are conclusory. Plaintiff does not allege any specific facts as to when or how he made alleged demands for information to any of the defendants, and he does not allege any specific facts regarding any "concealment" of the facts by any of the defendants amounting to anything more than nondisclosure.

The Court in *Jolly, supra*, cited *Miller v. Bechtel, Inc.* (1983) 33 Cal.3d 1983 as support for the proper application of the discovery rule in explaining that, "Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her. (*Jolly, supra*, 44 Cal.3d at 1110 [emphasis added].) *Miller v. Bechtel* involved an action by the plaintiff wife, among other things, to set aside a part of the marital settlement agreement on the grounds of her husband's misrepresentations regarding a community asset, the value of the stock in the corporation by which he was employed. The Court rejected the plaintiff's claim that she had no duty to investigate the valuation of stock she obtained in a marital settlement agreement because her husband "had an obligation as a fiduciary to provide her with full and correct information as to their worth. [Citation omitted.]" (*Id.* at 875.) The Court explained: "Even assuming the correctness of this assertion, however, if she became aware of facts which would make a reasonably prudent person suspicious, she had a duty to investigate further, and she was charged with knowledge of matters which would have been revealed by such an investigation. [Citation omitted.]" (*Id.* at 875.)

Among the facts cited by the California Supreme Court in holding the wife's claims were time-barred was that "[I]n 1972, plaintiff's attorney wrote Miller's counsel a number of times regarding implementation and interpretation of various provisions of the agreement. In October, he requested a copy of the shareholders' agreement and information 'as to the basis of valuation of the Bechtel shares.' Plaintiff then sought the advice of a third attorney who, in February 1973, reiterated the request made in the October letter, and threatened to file suit to obtain the information if it was not disclosed voluntarily. Such an action was not filed and, so far as the record shows, the information was not provided and the request was not renewed." (*Id.* at 873.) The wife submitted a declaration in opposition to the motion for summary judgment, attesting that she could not have obtained the information on the true stock valuation, "until [her ex-husband] redeemed it in 1977 because Bechtel was a 'closed' corporation which 'jealously guarded' its financial records.." (*Id.*)

In light of these facts, the Court affirmed the trial court determination that her claim was time-barred. The Court elaborated: "The declarations establish without question that attorneys who represented plaintiff following Hamlin's withdrawal as her lawyer entertained serious doubts whether the value attributed to the stock in the property settlement agreement accurately reflected its "'true value.' They not only wrote Miller's lawyer on two separate occasions requesting a copy of the shareholders' agreement, but specifically sought information regarding the method used to establish a value for the shares, and threatened to file suit if the information sought was not forthcoming. The first inquiry was made before the final decree of dissolution was entered, and the second seven months thereafter, well within the period of limitations. Since plaintiff's representatives chose not to pursue their inquiry further despite their suspicions, she is charged with knowledge of facts which would have been revealed if she had pursued the investigation. As we conclude above, we cannot assume that such an inquiry would have been unavailing. [¶] Moreover, although we do not suggest that a plaintiff in an action for fraud against a fiduciary is charged with knowledge which could have been gained by examining public records, in the present case, after plaintiff's suspicions had been aroused, she could have discovered, by consulting such records, that the value of the Bechtel stock had increased by 270 percent nine months after she signed the property settlement agreement, and one month before the final decree of dissolution was entered. This information, which could have been obtained without the necessity for legal process, would at the very least have reinforced plaintiff's doubts whether the "true value" of the stock was as represented in the property settlement agreement." (*Id.* at 875 [emphasis added].)

The Court finds the facts in the *Miller v. Bechtel* decision analogous the those present in this case that warrant the same determination that Plaintiff had inquiry notice of his potential claims at least as of July 2019 or earlier and could have obtained public records information that would have indicated that a judgment had been entered in 2017 in the Masoudi dissolution to which his lien attached and which virtually inevitably would have resulted in some distribution of marital property to Masoudi made without satisfaction of his attorneys' lien. This is the context in which the Court places Plaintiff's allegation in his July 2019 verified complaint in the First Masoudi Action that Masoudi "completely disregarded" his attorney's lien. It is a factual admission the import of which is that he had a suspicion that Masoudi had received assets subject to his attorney's lien.

Plaintiff argues that his complaint in the First Masoudi Action did not allege any impairment of his lien rights but only the right to a monetary judgment for breach of the Legal Services Agreement or alternative claims for quantum meruit and common counts for the recovery for the value of his

services. (Masoudi RJN Exh. 1.) Plaintiff tries to parse the meaning of "disregarded" in his verified complaint in the First Masoudi Action. The term "disregarded," Plaintiff argues, means only "ignored" based on its dictionary definition, not that he was alleging that his lien had been "impaired" by Masoudi obtaining, using or transferring property in the face of his attorney's lien. But the allegation that Masoudi "disregarded" or "ignored" his lien is an allegation that admits Plaintiff had suspicions that he had suffered injury from a wrongful cause because Masoudi had made a recovery in the dissolution action in some manner without satisfying his lien, particularly when the allegation is considered in the context of the ensuing sentence that he was informed and believed he had additional causes of action that he would be able to confirm through discovery.

"Impairment" of Plaintiff's attorneys' lien is the consequence of Masoudi disregarding or ignoring his lien. The register of actions for the dissolution proceeding which Plaintiff could have readily obtained, particularly when he filed his Notice of Attorneys' Lien in that case in November 2019, more than six years after the dissolution commenced, showing the final judgment had been entered in the dissolution proceeding in 2017 is information that would have led a reasonable person, particularly a reasonable attorney, to suspect that Masoudi had obtained some recovery, some distribution of assets from the dissolution, even if the Alamo property had not been sold. Indeed, the fact that Plaintiff was admittedly monitoring the status of any sale of the Alamo property is more evidence that Plaintiff was suspicious that assets would be disposed of in the dissolution proceeding without payment to him. The fact that Plaintiff was monitoring the Alamo property and the Alamo property was withdrawn from the market in 2015 would heighten a reasonable person's suspicion, particularly a reasonable divorce attorney's suspicion, that Masoudi was receiving a distribution of some other marital property since the house was not being sold and since Masoudi contends that he understood that was the principal source from which his lien would be satisfied. (Opp. p. 5, ;ll. 10-12, citing 2AC ¶¶ 9, 12-29.) Indeed, other evidence of Plaintiff's suspicion that he had lien rights that were being ignored (or impaired) is his filing and service on the Zakheim Defendants for the first time a Notice of Attorney's Lien in the Dissolution Action in November 2019 on the heels of his verified complaint initiating the First Masoudi Action.

Plaintiff has alleged that, despite his demands, the Zakheim Defendants concealed information regarding the distribution Masoudi received, but Plaintiff does not allege any specific acts of concealment or any affirmative misrepresentations or half-truths by the Zakheim Defendants. Based on the allegations of the 2AC read collectively, the "concealment" consisted of a failure by the Zakheim Defendants to affirmatively disclose information to Plaintiff about the outcome of the dissolution proceeding. Plaintiff alleges generally without any specific facts that the Zakheim Defendants refused to disclose information regarding any recovery Masoudi made from the Dissolution Action despite his demands. These allegations are further admissions that support that Plaintiff had, or should have had, a reasonable suspicion that Masoudi had received assets from the dissolution, that the Zakheim Defendants had not reserved any assets to pay him from any judgment, settlement or recovery Masoudi obtained, and that instead Masoudi "disregarded" his lien. Indeed, the alleged refusal by the Zakheim Defendants to provide him any information regarding the results of the dissolution despite his alleged demands is itself a fact known to Plaintiff that would raise a suspicion not only that Masoudi received a recovery to which his attorney's lien attached and was "ignored" but also that the Zakheim Defendants breached their alleged duties to Plaintiff as an attorney's lienholder with an interest in the recovery. (*Miller v. Bechtel, Inc.*, *supra*, 33 Cal.3d at 873,

875.)

Plaintiff's position is that his monitoring the Alamo property and demanding, and not receiving, disclosure of the outcome of 2013 dissolution action was sufficient "diligence." He in effect argues that no statute of limitations commenced on his lien impairment claim until he was directly told by Masoudi that she obtained a recovery 11 years after the dissolution commenced. Under Plaintiff's theory, if Masoudi had not made that direct disclosure to him in July 2024, the statute of limitations would never have commenced so long as the Alamo property remained unsold and no one told him Masoudi obtained a recovery in the dissolution. The only reasonable conclusion based on the facts alleged in the 2AC in this case, judicially noticeable allegations in First Masoudi Action, and judicially noticeable facts from the dissolution action is that Plaintiff had or should have reasonably had suspicions of injury and a wrongful cause, including an impairment of his attorney's lien, well over four years before May 16, 2025, and that he was not reasonably diligent in pursuing information and his claims, based on the information available to him and suspicions regarding the dissolution having concluded without his attorney's lien being honored as of 2017, eight years before this lawsuit.

The statute of limitations under the delayed discovery rule begins to accrue when the plaintiff has information that creates a suspicion of injury and a wrongful cause. (*E-Fab, Inc.*, *supra*, 153 Cal.App.4th at 1320.) That suspicion triggers a duty of inquiry and investigation, regardless of the existence of a fiduciary relationship; Plaintiff could not fall asleep on the existence of suspicious facts that he suffered injury based on a wrongful cause; he had a duty to investigate and pursue the facts. (*Jolly*, *supra*, 44 Cal.3d at 1111; *Fox*, *supra*, 35 Cal.4th at 808-809.)

Unlike the wife in *Miller v. Bechtel*, Plaintiff is an attorney. If his demands for information to Masoudi and the Zakheim Defendants were not met with information regarding the judgment or settlement in the dissolution action, that refusal to provide him information itself would raise reasonable suspicion that his attorneys' lien had been "disregarded," that property had been distributed to Masoudi without honoring his lien, and that his attorney's lien had been impaired because it was not satisfied out of any recovery, by settlement or judgment, from the dissolution proceeding. He had the ability to file suit for declaratory relief to obtain a determination that his lien was valid, and to fix the amount, a prerequisite to its enforcement, as well as a determination of what property his attorney's lien attached to and its priority. (*See, e.g., Cetenko v. United California Bank* (1982) 30 Cal.3d 528, 531–534; *Waltrip v. Kimberlin* (2008) 164 Cal.App.4th 517, 525 [citing *Cetenko*]; *Brown v. Superior Court* (2004) 116 Cal.App.4th 320, 323-324 [priority dispute between attorney lien holder and judgment creditor; attorney must establish validity and amount of attorney lien before priority dispute can be determined].)

The delayed discovery rule does not provide that the statute of limitations begins to accrue when the plaintiff obtains the facts or evidence to support the elements of his cause of action. Plaintiff clearly knew since at least July 2015, or earlier based on the April 2015 notice of attorneys' lien attached to the 2AC₂ that he had not been paid for his services and that he had lien rights to recover what he claimed to be owed from any recovery Masoudi obtained in the dissolution proceeding. He knew that Masoudi's dissolution proceeding had been pending since 2013. He sued Masoudi in the First Masoudi Action in 2019, six years after the dissolution proceeding began, four years after he was discharged from the case, and two years after the final dissolution judgment. The passage of time alone from the time the dissolution proceeding began is information that was known to Plaintiff that would have or

should have raised a suspicion to a reasonable person, particularly an attorney, that by no later than six years later in 2019, the dissolution proceeding had resulted in a final judgment or settlement with assets to Masoudi from which he had not been paid despite his attorneys' lien. The only reasonable conclusion under the facts alleged and circumstances highlighted is that this suspicion of a recovery by Masoudi from the dissolution without satisfaction of his attorney's lien, which as a consequence resulted in the impairment of his lien, underlies the allegation that Masoudi "disregarded" his lien and the allegation in the second sentence of paragraph 11 of his verified complaint, and the suspicion was the basis for his information and belief that he had additional causes of action. (Masoudi RJN Exh. 1 [First Masoudi Action Ver. Compl. ¶ 11].)

As in *Miller v. Bechtel*, *supra*, regardless of the existence of any fiduciary relationship, once Plaintiff had information warranting a suspicion of his injury and its wrongful cause, he was under a duty to investigate and find the facts, and the statute of limitations began to accrue. (*Alfaro*, *supra*, 171 Cal.App.4th at 1394.) Plaintiff's position that he could sit idly by as 11 years passed and fall asleep in the face of the obvious suspicion Plaintiff had in 2019 that Masoudi had made a recovery from her dissolution is untenable legally and factually. The Court concludes that reasonable minds could only conclude from the present facts that Plaintiff's claims against Masoudi accrued by July 1, 2019 at the latest, under the circumstances and in light of his own allegations in his verified complaint in the First Masoudi Action as well as the allegations of the 2AC noted above. Plaintiff's claims against Masoudi are time-barred.

The Court also concurs with the Zakheim Defendants that Rodriguez cannot rely on the equitable estoppel doctrine as articulated in *Lantzy*, *supra*, to make his May 2025 lawsuit against them timely. Plaintiff does not allege any facts to support that the Zakheim Defendants' conduct "induced" Rodriguez to refrain from suing. Their silence or "refusal" to reveal information despite his alleged general demands, given the other facts and circumstances detailed above, was not conduct that can reasonably be construed as inducing him to not sue; rather, his alleged demand for information is an admission of his suspicions, and any such refusal to provide information should have triggered more suspicion and investigation and ultimately a lawsuit. Rodriguez was clearly aware of facts and circumstances warranting investigation into the final dissolution judgment and the assets obtained by Masoudi in connection with that judgment entered in 2017, no later than July 2019.

The demurrer based on the statute of limitations as to all causes of action against the Zakheim Defendants is **SUSTAINED**.

C. Demurrers on Other Grounds

Having concluded that all claims against the Zakheim Defendants are barred by the applicable statutes of limitations, the Court need not address other grounds raised in their demurrer.

Conclusion and Ruling

The general demurrer by the Zakheim Defendants to all causes of action alleged against them based on the statute of limitations is **SUSTAINED, WITHOUT LEAVE TO AMEND**. Having had the opportunity to allege facts to demonstrate the claims did not accrue until a time within the statute of limitations based on the filing of the complaint in this case on May 16, 2025, and having failed to do so based on the facts alleged, the Court finds no basis to grant leave to amend under the circumstances.

24. 9:00 AM

CASE NUMBER: C25-01397

CIVIL

CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM

*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF PLAINTIFF'S SECOND AMENDED COMPLAINT - CONTINUED FROM 9/14/26

FILED BY: ZAKHEIM, SIMONA YANA S.

TENTATIVE RULING:

Before the Court is a motion by defendants Simona Zakheim and Hyden Zakheim, LLP to strike portions of the second amended complaint. The motion is **DENIED AS MOOT**, based on the Court's concurrent ruling on the demurrer by those defendants. (See Line 23 above.)